

Work of the County Court

This is a House of Commons committee report, with recommendations to government. The Government has two months to respond.

Fourth Report of Session 2024–25

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Related inquiry: [Work of the County Court \(https://committees.parliament.uk/work/7972/Work-of-the-County-Court/\)](https://committees.parliament.uk/work/7972/Work-of-the-County-Court/).

Date Published: Monday 21 July 2025

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Summary

Our Report finds that the County Court is a dysfunctional operation that has failed to adequately deliver civil justice across England and Wales. It is the ‘Cinderella service’ of the justice system. This has never been more evident than when compared to the reviews currently underway into both sentencing and the criminal courts and the fundamental absence of any equivalent review of the civil justice system.

We found that the situation in the County Court is dire and requires urgent attention. The court estate is in a state of significant disrepair following years of “chronic underfunding,” with regional variation remaining a perennial issue, and the operations of the court having been failed by a dysfunctional attempt at digital reform. The Committee found that the problems would be all the greater without the commendable efforts of court staff to operate a system that fails to provide access to justice.

Therefore, we recommend that an urgent and comprehensive, root-and-branch review of the County Court is undertaken to establish a sustainable plan for reducing the systemic delays and inefficiencies entrenched across its operations.

Our Report raises serious concerns over the current level of delays across the County Court. We found that although the pandemic contributed to such delays, this trend had been growing since 2012. The latest annual statistics show that currently it takes over 50 weeks, on average, for a small claims track case to be heard. The delays are driven by a range of well-known factors; factors that Ministers and officials have readily recognised. Such factors include increased demand, recruitment and retention issues, and increasing volumes of litigants-in-person.

We also consider the condition of the County Court estate, and its impact on staff and judicial morale. We have heard extensive examples of poor court maintenance including concerning instances of asbestos and rat infestations. We are concerned by the notable lack of action taken by HM Courts and Tribunal Services (HMCTS) to remedy these unacceptable working conditions. Given the prevalence of the issues that remain, we are unclear what proportion, if any, of the £220 million of capital expenditure allocated to HMCTS between August 2023 and March 2025 was spent on the County Court.

We examine the accessibility of the County Court, both physically across the court estate, and in users' ability to contact the Court. There are currently 160 step free civil court buildings, leaving 35 which are not readily accessible, requiring users to go through back or staff entrances. This is unacceptable. We have also heard of extensive backlogs in corresponding with court centres and found this only exacerbates the delays across the system.

Given the notable increase in litigants-in-person, we also raise concerns over the accessibility of the County Court's complex and comprehensive procedural rules. Our evidence cites this as a recurring driver of increased delays, and we recommend the Ministry of Justice (MoJ) publishes guidance that uses clear and simple language to inform and assist claimants throughout their claim journey.

Our Report also considers the detrimental impact of the HMCTS Reform programme on the County Court following its eventual conclusion in March 2025. The programme promised to deliver transformational digitisation, yet this ultimately failed. As a result of the programme's ever-diminishing scope, the County Court now operates with a myriad of legacy and Reform digital systems, and continues to use outdated paper-based processes. We conclude that the HMCTS Reform programme was over-ambitious and ultimately under-delivered in transforming the County Court; it follows that all de-scoped Reform projects should be prioritised as a matter of urgency.

Looking to other opportunities, we finally explore how artificial intelligence, as well as any future roll-out of early mediation, could provide the County Court with viable solutions to the endemic level of delays across the County Court.

1 Introduction

Background to our inquiry

1. The County Court of England and Wales is the national civil court that allows citizens and businesses to assert their rights. HM Courts and Tribunals Service (HMCTS) is an executive agency of the Ministry of Justice (MoJ), responsible for the administration of the civil courts, and all other jurisdictions. The County Court's work includes the recovery of personal and corporate debt, known as 'money claims', landlord recovery of property, as well as personal injury, known as 'damages claims'. In 2024, the County Court issued 1,730,709 claims.¹

2. Our predecessor committee opened its inquiry 'Work of the County Court' on 26 October 2023 after HMCTS published data showed a worsening of delays.² The inquiry set out to examine the long-standing concerns over court capacity and called on the Government to provide the "resources to ensure that the County Court has the capacity to deal with cases in a timely fashion".³ A substantial programme of work was undertaken; however, our predecessor committee was unable to publish a report before Parliament was dissolved on 30 May 2024, prior to the General Election.⁴

3. Recognising the importance of the County Court, we agreed to re-open the previous committee's inquiry on 21 January 2025. We believe that this report will provide valuable insights on the current operations of the County Court, and is an opportunity for the current Government to learn lessons from reforms instigated by the previous Government.

4. As part of our call for evidence we invited submissions from all stakeholders involved in the civil justice sector. In early 2025, we held two public evidence sessions, including with the Master of the Rolls and Head of Civil Justice, Sir Geoffrey Vos, and the Minister for Courts and Legal Services, Sarah Sackman KC MP. We also held a private meeting and roundtable discussion with academics, legal professionals, and leading policy experts, following up these discussions with court staff and the judiciary on our visits to the Civil National Business Centre in Northampton, Northampton County Court, and the Central London County Court. We are grateful to everyone who has engaged with our evidence gathering.

5. In this report, we first set out the scale of the County Court, and the variety of work it conducts. We go on to assess the well-established barriers to effective and efficient justice, firstly looking at delays, and then at issues such as staff and judicial capacity which compound the entrenched inefficiencies in the system. Finally, we turn to the recently completed HMCTS Reform programme and other opportunities such as artificial intelligence.

2 Role of the County Court

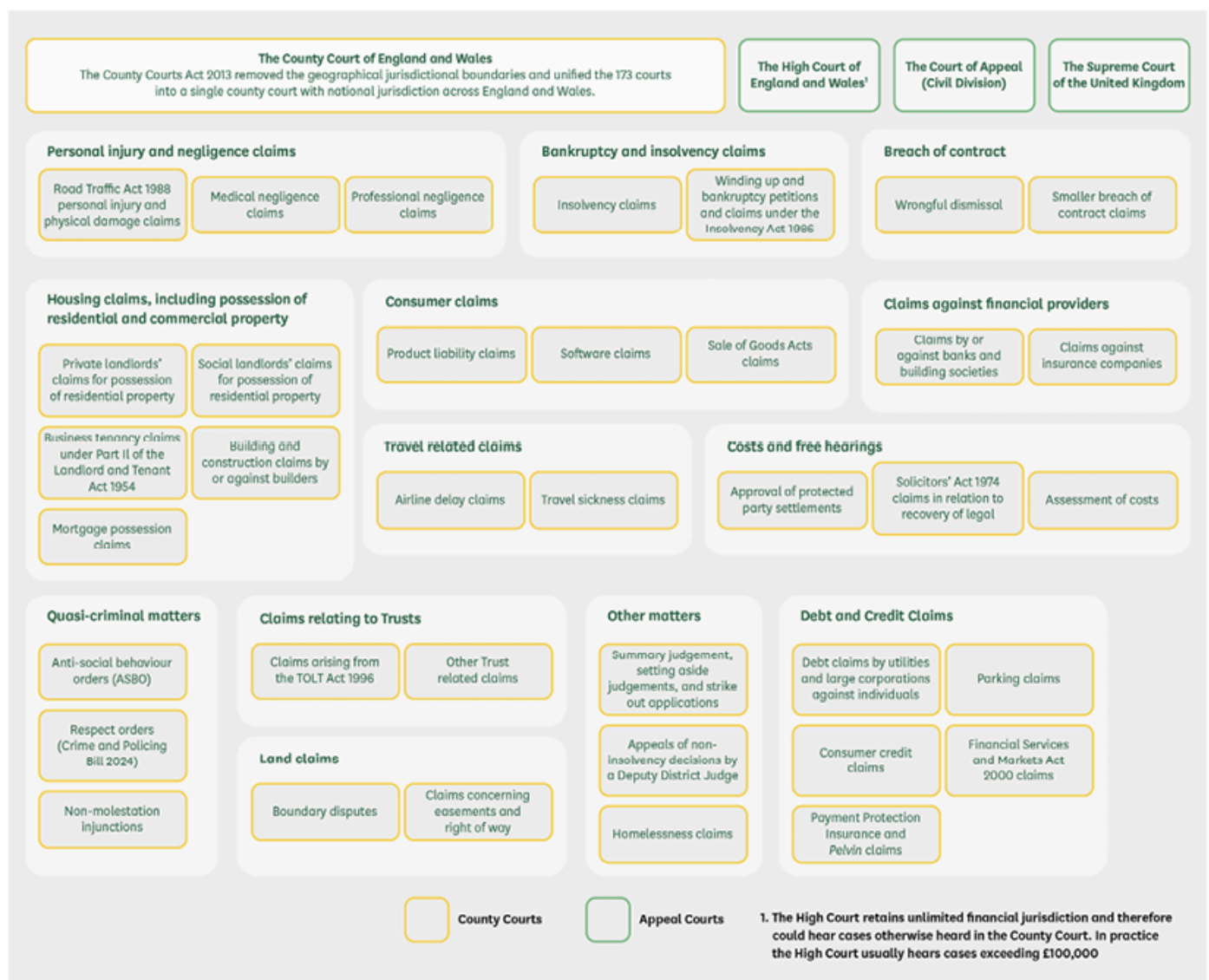
Overview of the County Court

6. The County Court has a broad jurisdiction and is the entry point for the majority of civil litigation in England and Wales. Its work is headed by the Master of the Rolls and undertaken by District, and Deputy District, Judges. For the most part, the County Court deals with claims proceeding in the small claims track, the fast track, the intermediate track, and the multi-track.

7. The work undertaken by the County Court is vast, extending beyond ordinary disputes to include claims arising from the Trust of Land and Appointment of Trustees Act (TOLTA), as well as being the forum for certain anti-social and behavioural injunctions. The Master of the Rolls, Sir Geoffrey Vos, and the Deputy Head of Civil Justice, Lord Justice Birss, provided us with a “non-exhaustive” list of the 38 most common types of disputes resolved in the County Court.⁵ This illustrates the scale of work completed by the County Court, and goes some way to explain why it has, so far, been difficult to digitise all County Court claims.

Fig. 1: Overview of the County Court

Overview of the County Court



8. Adding to its complexity, the County Court overlaps with the High Court in some jurisdictions. While the High Court retains unlimited financial jurisdiction, meaning it may hear any civil dispute, High Court jurisdiction is generally reserved for more complex and higher-value civil disputes, with the County Court handling a broader range of lower-value claims. The different

jurisdictions of the High Court and County Court are governed primarily by the Civil Procedure Rules (CPR) but may also be found in statute. The CPR dictates that claims that exceed £100,000,⁶ or £50,000 in respect of personal injuries, must be commenced in the High Court. Claims worth less than £100,000 that have been commenced in the High Court are generally transferred to the County Court.

9. The Crime and Courts Act 2013 saw the removal of geographical jurisdictional boundaries, whereby each court had a separate legal identity, and created a single, unified county court with a national jurisdiction for England and Wales.⁷ This was initially supported by two national business centres with the County Court Money Claims Centre (CCMCC) at Salford processing claim forms and the County Court Business Centre (CCBC) at Northampton acting as a bulk issuing centre. Following the closure of the CCMCC in May 2023, work was relocated to the CCBC in Northampton and subsequently renamed the Civil National Business Centre (CNBC).

Journey of a County Court claim

10. Proceedings in the County Court begin when the court issues a claim form at the request of a claimant. The places and methods of issuing a claim can differ depending on the type of claim but the most common methods of issue are via post to the CNBC or online through one of the portals:

- the Damages Claim Portal (DCP);
- Money Claims Online (MCOL);
- Online Civil Money Claims (OCMC);
- Possession Claim Online (PCOL).⁸

11. Money⁹ and damages¹⁰ claims accounted for over 1.5 million of the total number of claims heard in 2024. These types of claims are for a sum of money (specified or unspecified) awarded by the court as compensation to the claimant. Money claims involving no more than two defendants and a fixed amount below £100,000 may be conducted online through the MCOL service with the claim form then sent by the CNBC to the defendant.¹¹ A defendant has 14 days to respond to a money claim; a response can include admitting the claim, filing a defence, or issuing a counterclaim. Where a defendant fails to respond within the 14 day timeframe, the claimant can apply to the court for a default judgment.¹²

12. The majority of cases in the County Court fail to reach trial, with only 262,855 of the 1,530,019 total money and damages claims defended in 2024. Of those reaching trial, only 146,506 were allocated to a track. An allocation to track determines how a case will be managed through the County Court. Since 1 October 2023, claims issued in the County Court are allocated to one of four tracks:

- The **small claims track** deals with claims below £10,000 and where the court considers them simple enough for parties to represent themselves without legal representation.
- The **fast track** is the default track for cases that are not small claims and involve damages below £25,000. Hearings are generally considered straightforward and can be heard in a single day.
- The **intermediate track** is the track for cases ranging from £25,000 and £100,000, or where the case is too complex for fast-track.
- The **multi-track** serves as the track for cases exceeding £100,000¹³ or, where the complexity of the law, facts and evidence of the case are such that the immediate or fast tracks are inappropriate. Multi-track claims can be heard in either the High Court or the County Court.

13. Since October 2024, mandatory¹⁴ mediation has been implemented for claims on the small claims track¹⁵ which were issued on or after 22 May 2024. Free and confidential mediation is provided by HMCTS Small Claims Mediation Service (SCMS), though parties may opt to mediate privately.

14. If a claim proceeds to a final hearing, the format can vary based on the allocated track. For instance, a trial hearing on the small claims track will be just one hearing in either open court or within a judge's room, whereas an intermediate track final hearing will be held following a pre-trial review in open court and last for no more than three days.

15. County Court Judgments (CCJs) are enforceable via the County Court bailiffs or other administrative enforcement methods, such as attachment of earnings. The failure to pay a judgment debt within 28 days can lead to a judgment remaining on the Register of Judgment, Orders and Fines.¹⁶

16. CONCLUSION

The criminal justice system is often the focus of mainstream attention and gets recognition for delivering justice, but with over a million claims each year, and a vast jurisdiction, the County Court is where most citizens and businesses encounter the justice system. It is imperative that the improvement of the County Court becomes a key priority of the Ministry of Justice.

3 Delays in the County Court

17. The old legal maxim "justice delayed is justice denied" is commonly used in discussions of increasing wait times, and backlogs across the court system. It epitomises the issues facing the County Court: unacceptable and increasing delays across nearly all types of claims. This reality was fittingly described by the Forum of Insurance Lawyers (FOIL) as "a chaotic, disorganised service, where there appears to be little accountability and where error, delay and inefficiency are the norm".¹⁷

18. Over the last decade, the increase in caseload is seen most significantly in the increase in money and damages claims heard in the County Court. In data published by the Ministry of Justice (MoJ), of the 1.7 million claims in 2024 over 88 per cent were money and damages claims. The same MoJ data shows that in 2015, the County Court received just over 1.5 million claims, over 80 per cent of which were money and damages claims.¹⁸

19. Over the same period, it took an average of 50.7 weeks between a small claim being issued and going to trial in 2024, up from the 31.6 weeks taken in 2015. This is an increase of over 19 weeks on average. For fast, intermediate¹⁹ and multi-track claims, the average timeliness between issue and trial was a little over a year at 54.3 weeks in 2015, but stood at 79.4 weeks in 2024.²⁰ The Association of Consumer Support Organisation (ACSO) concludes that this data is "evidence of comprehensive administrative failure" and "the county court is taking far longer to do much less".²¹

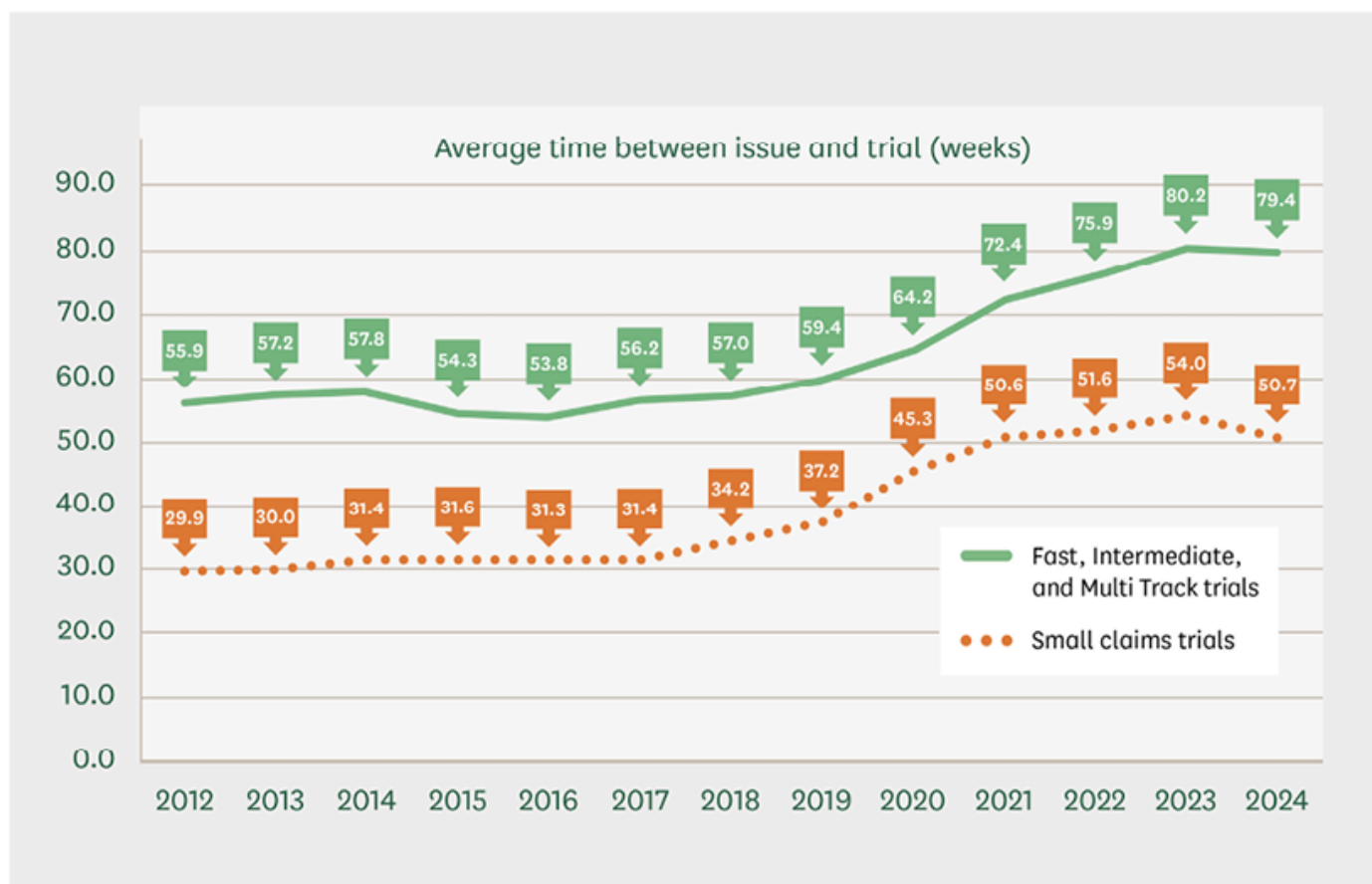
20. Legal firms also collect their own data on delays although this is rarely published. However, in their evidence to our inquiry, Anexo Group plc, a leading litigation specialist in road traffic cases, shared:

From our empirical evidence, measured over a two-year period, excluding late vacations/adjournments the average length of delay is 516 days. Considering late vacations/adjournments, this figure rises to 786 days on average. The longest delay to a case was 1624 days from issue until trial (a case in Maidstone County Court) issued on 6th August 2019 and due to be finally heard 19th January 2025.²²

21. The last decade was impacted by the covid-19 pandemic where total claims dropped to the lowest number since 2000, at just under 1.3 million. Prior to the pandemic, the total claims received by the County Court had been steadily growing since 2012. The pandemic exacerbated the growing delays with the time between a small claims issue and trial jumping to an average of 45.3 weeks. For fast, intermediate and multi-track claims, the average time between issue and trial went up to 64.2 weeks. The MoJ notes that the volumes of new claims were suppressed during the pandemic, but "the reduction in the number of hearings that could take place and/or delays instigated at the proceedings (for example, property possessions were suspended for periods of time) resulted in longer times to trial".²³

Fig. 2: Average time between issue and trial (weeks) of small, fast, intermediate and multi-track claims

Average time between issue and trial (weeks)



22. We note that in the HM Courts and Tribunals Service (HMCTS) Framework Agreement, a core objective of the organisation is to “drive continuous improvement of performance and efficiency across all aspects of the administration of the courts and tribunals”.²⁴ The civil justice quarterly statistics, covering January to March 2025, show the average time between issue and trial for small claims to be 49.8 weeks whilst for fast, intermediate and multi-track claims it stands at 74.7 weeks.²⁵ The Minister for Courts and Legal Services, Sarah Sackman KC MP, told us that the increase in delays over the past decade demonstrate “room for improvement” in the performance of the County Court.²⁶

23. Our predecessor committee visited Singapore in 2024 as part of its original inquiry. The trip was an opportunity to observe and engage with a world-leading civil justice system. In Singapore, court operations are held accountable to a series of key performance indicators (KPIs). The KPIs are publicly accessible and allowed academics, and others operating in the area, a greater level of transparency for effective data-led scrutiny. HMCTS, and specifically the County Court, does not have published KPIs that allow for an assessment of County Court’s performance, or for us to effectively scrutinise the timely delivery of justice. The ACSO told us that the crisis in the County Court, with its record-high delays, was indisputable given there is “no clear strategy or agreed targets from the government or its agencies to address it”.²⁷

24. The HMCTS civil justice quarterly statistics, where nearly all the available data on the County Court stems from, have been heavily criticised by legal practitioners and academics. The data on timeliness only reflects the cases that make it to trial. In 2024, that was just 2.8 per cent of the total claims heard; with the rest resulting in default judgments, for undefended claims, or settlement.²⁸ The Master of the Rolls, Sir Geoffrey Vos, and Deputy Head of Civil Justice, Lord Justice Birss, warned that the data should be “viewed with caution” given over 90 per cent of civil claims in the County Court settle prior to final hearing.²⁹

25. Our predecessor committee heard Dr Natalie Byrom, a leading policy adviser in justice system reform, give evidence on the inaccurate data on delays due to their failure to take settlement into account.³⁰ Dr Byrom also raised concerns on settlement’s exclusion from HMCTS’ data collection and argued it was exacerbated by the failure to collect data on why claimants and defendants settle cases:

There is all the difference in the world between cases that settle because both parties have been supported to understand the merits of their case, and have made an informed compromise, and cases that settle because delays have meant that one party—usually the weaker or more vulnerable one—has run out of resources and cannot afford to wait any longer, or is simply so brutalised and confused by the system that they just give up. The former is one possible outcome arising from an effective civil justice system. The latter is a symptom of a system that is at best failing and at worst abusive to some of the most vulnerable people, who rely on it to do better.³¹

26. The data published by HMCTS clearly shows delays are not an isolated problem but are entrenched nationally. The data does not look at individual regions or court performances, yet, as the Master of the Rolls aptly put it, there are “hotspots of inefficiencies” where delays are notably worse and open secrets in the civil justice profession.³² The three “problematic areas” identified are: London and the South-East, Central London County Court and the Civil National Business Centre (CNBC) in Northampton.³³ We will discuss the contributors to delays such as judicial capacity, partial digitisation and the continued use of paper in later chapters.

27. In the absence of regional data, most firms and organisations analyse their own claims across several regions to gain any insight into the “patchy picture” of delays.³⁴ The Civil Justice Council (CJC) performed analysis on the delays using their own data collection and found that “when all courts were ranked by the average number of days taken to reach a first full hearing, 8 in 10 of the bottom 20% were in London or the South East of England”.³⁵ Anexo Group plc report that nearly three-quarters of all delays are concentrated in 12 courts in London and the South East.³⁶

28. Such regional variations result in a postcode lottery for court users. ACSO’s data showed the “consistently the worst performing region” of the South East had an average delay of 423 days, but comparative delays in the North East were just 296 days.³⁷ When they looked at individual courts, Dartford had an average of 829 days, but Blackpool was operating the best at 79 days.³⁸

29. The lack of regional performance data also inhibits the sharing of good working practices. For instance, Minister Sackman noted Wales as working well and with fewer delays,³⁹ whilst it is more generally argued that less populated areas work more efficiently.⁴⁰ However, without evidence to support and facilitate understanding of what works well in the County Court we are concerned that such regional variation will continue to plague the system.

30. CONCLUSION

‘Justice delayed is justice denied’ has never been more relevant to the work of the County Court: the current level of delays is unacceptable. Whilst we recognise the pandemic significantly contributed to the backlog in cases, the available data clearly shows it only exacerbated existing trends. The rising caseload, and increased delays were in motion before 2020, and post-pandemic there has been little by way of improvement.

31. CONCLUSION

The civil justice quarterly statistics do not aid transparency or allow for effective data-led scrutiny into the performances of individual courts. The County Court is known to house significant regional variation across England and Wales yet there is no evidence of pro-active measurement of these regional differences, analysis of why such variation occurs, or sharing of good practice.

32. RECOMMENDATION

HMCTS must collect and publish data on individual court and tribunal performances to allow for the identification of regional disparities, and support investment planning in reducing County Court delays. The data must include the timeliness of pre-trial stages, rates of settlement and enable HMCTS’ performance to be measured against published key performance indicators.

33. RECOMMENDATION

As part of any future review, HMCTS must develop a manageable programme to reduce the delays to pre-2015 levels by the end of this Parliament.

Listing

34. A case that fails to settle ultimately culminates in the scheduling of a final hearing. As set out in the Constitutional Reform Act 2005, the listing of cases, the determination of when and what date they will be heard by a judge, is a judicial responsibility supported by HMCTS. The practice of listing often differs across different court centres but, for the majority, ‘block listing’ is the most prevalent approach. Block-listing refers to where multiple cases, often those deemed likely to settle or be resolved quickly, are scheduled for hearing in a specific time slot or on a particular day. It often results in ‘over-listing’ as more cases are scheduled than can be heard.

35. The Master of the Rolls, Sir Geoffrey Vos, told us that block listing is “fundamental” to how the civil justice system works, providing the court with flexibility given the high rates of settlement in the County Court.⁴¹ We have heard that Bedford County Court “routinely lists 10 or 12 fast-track trials in front of two district judges. A fast-track trial is usually at least half a day, often a day, of court time”.⁴² Bedford is by no means the only court regularly doing this, but when considering the national impact of block listing it is a significant number of “litigants [sat] on floors and stairs”, and their legal representation, waiting for a case that likely won’t be heard.⁴³

36. Block listing poses two issues for legal practitioners: first, the time spent waiting for their case to be called and, secondly, who bears the costs of those delays. For most parties, turning up at court results in a day where claimants are unable to work, they incur travel expenses to and from the hearing centre, and they incur legal expenses with no guarantee of the case being heard. We have heard that there is no mechanism for costs to be recovered due to over-listing despite parties bearing no responsibility for the further delay. What arises from these persistent delays are parties settling at under value in order to avoid incurring such costs or experiencing further delays.⁴⁴

37. Some legal costs for parties have been reformed under the Fixed Recoverable Costs (FRC) scheme. Extended in October 2023, the FRC scheme now applies across the fast and intermediate track for cases valued up to £100,000, excluding certain categories such as housing, and sets out the amount of legal costs the winning party can recover from the losing party. These reforms intended to ensure greater certainty and proportionality in legal costs. However, when the FRC scheme interacts with block listing, uncertainty around when the claim will actually be heard, and subsequent delays, can lead to the recoverable amount not reflecting the actual legal costs incurred. Anexo Group PLC aptly said:

The purpose of the fixed costs regime was to ensure that matters are dealt with expeditiously and proportionately. This cannot be the case when a matter has been placed in a floating, or overloaded, block list and subsequently vacated, and then re-listed, possibly on numerous occasions. The claimant will only recover one set of fixed costs and one hearing fee, however many times a case is vacated/adjourned. Even when this is due to lack of judicial availability, and where such lack of availability is designed by listing officers to be an unfortunate but potentially unavoidable consequence of floating and block listing (and will always occur when not enough of the block or floating list cases are capable of being resolved to ensure “one case one Judge”) there is no compensation paid out to the frustrated litigants. No responsibility is taken by HMCTS.⁴⁵

38. Block listing is not the only method used to reduce the length of delays, and backlogs in the County Court. During the pandemic, temporary courts, known as ‘Nightingale courts’, were set up to ease the pressures on the court system.⁴⁶ These were set up to hear all jurisdictions but 47 per cent of Nightingale courts heard civil proceedings during the pandemic. However, the Nightingale courts did not prevent a growing backlog and delays in the County Court still increased. As a result, HMCTS have since implemented ‘Blitz’ courts. These courts are temporary in nature and usually take place over summer, where listing officers and judges divert resource to the worst performing regions to help relieve the delays and clear the backlogs. These are typically used for small claims cases.

39. The pandemic also expedited the roll-out of virtual hearings. We have heard a significant amount of evidence in favour of their use during this time, but it was made clear that these types of hearings are no longer deployed as often as they could be.⁴⁷ The use of virtual hearings removes the need for parties and their counsel to be in a physical court, reducing demand on those court and consultation rooms, and reducing the personal expenses outlined above. Virtual hearings are at the discretion of the Judiciary, and usage depends on their preferences for a case to be heard in person, and as a result there is extensively different take-up.

40. Building on the partial relief Blitz courts offer, HMCTS are also conducting a pilot on virtual hearings called the ‘virtual pilot’ across civil, family and tribunals. This pilot provides between 2,000 and 3,000 days a year where judges from well-performing areas, such as the North East and West, try to clear the backlogs in London and the South East through virtual hearings. It is too early to comment on the impact of this pilot.

41. CONCLUSION

We recognise the role that block listing plays in providing flexibility to the schedule considering the high settlement rate in the County Court. However, we have heard concerns that it negatively impacts court users through financial implications and the increased frustrations of all parties resulting in more people settling as a means to end the cycle of uncertainty. This ultimately undermines trust in the system.

42. RECOMMENDATION

HMCTS, together with the Judiciary, must work together to collect the necessary data on listing and settlement rates to allow for data-informed listing practices ensuring any over-listing is minimised.

43. RECOMMENDATION

Litigants must be able to recover the legal, travel, and subsistence costs from HMCTS wasted as a result of over-listing and/or poor court administration preventing their cases from being heard.

44. RECOMMENDATION

HMCTS, and the Ministry of Justice, must facilitate the greater use of remote hearings, working alongside the Senior Judiciary to provide national guidance outlining when virtual hearings should be used.

4 Contacting the County Court

45. Following a review by the Judicial Executive Board, and its subsequent recommendations, the Ministry of Justice (MoJ) conducted a public consultation in 2011 into the unification of the County Court. The proposal received wide support, with 84 per cent of respondents in favour of unifying the County Court system.⁴⁸ The Crime and Courts Act 2013 was subsequently passed, creating a single national County Court for England and Wales.⁴⁹ The reforms instituted by the Crime and Courts Act 2013 resulted in the centralisation of bulk work activities at central administrative centres, now located at the Civil National Business Centre (CNBC) in Northampton.

46. On transfer to the CNBC in May 2023, the average age of outstanding cases stood at 15 to 19 days.⁵⁰ This quickly increased to between 35 and 49 days by July 2023 as Nick Goodwin, Chief Executive of HM Courts and Tribunals Service (HMCTS) told us that the transition to Northampton did not go “completely right,” and was one of the “bumps along the road” of recent reforms.⁵¹ This peak resulted in an increased number of complaints, and a temporary backlog that required a recovery plan to reduce the age and volumes of work. Officials from the MoJ echoed this, describing the delays as causing a “degree of disruption”.⁵²

47. The persistent delays and “serious deterioration” in case management at the CNBC result in poor user experience.⁵³ Those regularly using the centralised phone lines describe it as a “test of endurance” and cite wait times of anywhere from 30 minutes to over two hours.⁵⁴

48. HMCTS now publishes weekly performance data on the CNBC as part of its data transparency initiative. In the first week of June 2025, the CNBC was reporting nine working days for any issue of new claims on paper and 16 working days for correspondence received via paper or email.⁵⁵ These statistics show the number of working days before processing begins, therefore, the issue of new claims on paper or resolution of the correspondence request inevitably takes longer. Comparable statistics for the peak delays in July 2023 were 37 working days for any new claims issue and 107 working days for correspondence.

49. Following our evidence session with the Minister for Courts and Legal Services, HMCTS officials were able to share management information on the number of calls received by the County Court. This information showed that of over 865,000 calls to the CNBC between April 2024 and March 2025, just 60 per cent of calls were reached,⁵⁶ with an average wait time of over 24

minutes.⁵⁷ However, we have heard that once calls are received by a claims handler, the information that they are able to provide via these central phone lines can often be vague and limited. As claims handlers are not responsible for allocated cases but instead responsible for responding to the query of the caller, inquiries are frequently redirected to local courts for further information:

The County Court at Sheffield answers its calls promptly. The County Court at Barnet does not answer its calls at all. The County Court at Romford no longer has a telephone number. One must instead call a central inquiry line whose call handlers are unable to answer queries but can pass messages to the Romford Court, which might or might not deal with them.⁵⁸

50. The available statistics are also based on users finding the correct phone service in the first place. From our roundtable discussion it was clear that legal professionals could provide an extensive number of examples relating to the sheer volume of central phone numbers causing confusion as claimants were not able to understand which was the most appropriate number for queries relating to their claim.

51. Southwark Law Centre described their interactions with the central phone lines:

Often the caller will be directed to email the Court in order to obtain an answer to their query, whilst being warned that the email will be placed in a backlog of 10 to 12 weeks.⁵⁹

Consequently, the already backlogged email inboxes are put under further strain. Steven Jarman, Deputy Director of Civil Justice and Law Policy at the MoJ highlighted that:

80% of the emails that come through to the Civil National Business Centre are chasing updates on their cases. You can see how it is a vicious cycle. If you have a backlog, you get more chaser emails, which then takes more time to answer.⁶⁰

We are concerned that the inefficiencies of the central phone and email systems, alongside the lack of “meaningful information” provided in any response, are compounding delays in correspondence.⁶¹

52. HMCTS’ ‘Court and tribunal finder’ provides court users with a court search function allowing users to find their local court, based on postcode. On our visits, we heard that whilst a useful tool, claimants are sending papers to what is suggested as their local court to find out that their type of claim is not heard there in practice. For instance, travel claims are heard in Luton County Court, regardless of where the claimant is based. Despite unification, the nuances of the local court system remain, and poor communication provides a bad service to users.

53. CONCLUSION

Despite its intended aim of simplifying the operation of the County Court, the centralisation of essential court operations has had a devastating impact on the delivery of justice, entrenching the postcode lottery and results in debilitating delays for all parties. The current methods of contacting a county court do not work. Users cannot find the necessary contact information, and centralised inboxes and phone numbers appear unmonitored as they fail to provide the required response rate.

54. RECOMMENDATION

The CNBC must be integrated with local court case management systems to improve coordination and responsiveness. Allocated claims handlers and a clear point of contact must be introduced to ensure claimants can speak with someone knowledgeable and responsible for their case as it progresses through the County Court system.

55. RECOMMENDATION

‘Court and tribunal’ finder must be updated with up-to-date information about each county court, what type of claims they hear and all essential contact information.

5 Judicial and staff capacity

Judicial capacity

56. In 2022, our predecessor committee published a report into Court Capacity. It concluded that the ability to recruit judges and expand judicial capacity was vital to the efficient and effective delivery of justice.⁶² The inquiry heard of extensive concerns over judicial capacity, with the then Lord Chief Justice, Lord Burnett, describing the district bench, the main judicial resource of the County Court, as “well under-strength” and clearly drew the connection between lack of judicial resource and its adverse impact on capacity.⁶³

57. The Lady Chief Justice, Baroness Carr, described to us the “significant shortfalls” in judicial recruitment that exist across the board.⁶⁴ Minister for Courts and Legal Services, Sarah Sackman KC MP, went further, describing the situation in the County Court as a “major constraint” on timeliness.⁶⁵ The Master of the Rolls, Sir Geoffrey Vos, also identified the long-standing recruitment and retention issues of the judiciary, stating that over the span of his career “there has always been some recruitment problems”.⁶⁶

58. The workload of the County Court is fundamentally linked to judicial capacity, and prospective legislative changes such as those under the Crime and Policing Bill,⁶⁷ and Renter’s Rights Bill⁶⁸ will further increase the strain on the civil judiciary. The Lady Chief Justice explained that “it is Government responsibility, whenever they look at a new policy change, to look at judicial capacity and the effect it will have on judicial capacity”.⁶⁹

59. Historically, district judges have heard over 80 per cent of County Court claims.⁷⁰ The Association of HM District Judges explained that it is widely accepted that there is “a severe problem in recruiting salaried judges to the District Bench, despite major efforts being made to improve recruitment”.⁷¹ We have heard that such efforts in recruitment include an increased number of outreach events, and a new location-based recruitment exercise.⁷²

60. Attracting talent to the district bench has been challenging, with issues of court conditions, extensive delays, and court staff shortages inherently connected to dissuading potential applicants. In 2021, Lord Burnett explained the impact of lack of digital capacity and poor estate condition on recruitment:

One of the things that worries me is that the district bench is disproportionately located in courts that are not very good. One has to be realistic about this. We are trying to recruit successful lawyers, solicitors and barristers, who will not have spent the last 10, 15 or 20 years of their lives in buildings where the heating or the air-conditioning might not work, the roof leaks, the loos leak and so on. Although that is not the universal picture—I am not suggesting it is—it is too common a picture. People coming from the legal profession are used to working in environments where the IT works, where there is appropriate staff support and so on. This is one of the consequences of the degradation in the funding of the system that we have seen over many years. The environment in which people are expected to work in many places is just not good enough.⁷³

Such concerns are still echoed throughout our evidence to this inquiry and explain that the expectations on judges now include extensive admin work. The Bar Council provided reflections from their members, including one respondent noting:

Personally I would not apply to be a Deputy District Judge even though I am senior enough because the administrative side of the County Courts is too chaotic and their lists are far too busy. The job seems extremely stressful, unsupported and not particularly well paid.⁷⁴

61. The gaps in the salaried district judges resourcing are subsequently made up by an “over-dependence” on part-time Deputy District Judges, commonly termed ‘fee-paid judges’.⁷⁵ According to the Master of the Rolls, the current split between these judicial roles in the civil jurisdiction is estimated at 60 per cent salaried judges with the remaining 40 per cent made up by fee-paid judges.⁷⁶ Both the Lady Chief and Master of the Rolls have consistently told us of their desired split as being 80 per cent salaried judges.⁷⁷ They argue that moving to a greater proportion of salaried judges would create a smoother “disposition of justice”:

Fee-paid judges who do not sit every day tend to be a bit slower. This is not a criticism—they are making sure they are doing the job right—but they do not have the vast experience that district judges who have been there 20 years do, so they do not do things quite as quickly.⁷⁸

62. The 2024 Judicial Attitudes Survey (JAS) found the number of salaried judges intending to quit within the next five years had risen from 23 per cent in 2014, to 39 per cent in 2024.⁷⁹ Professor Cheryl Thomas KC (Hons) stated:

Evidence in the 2024 JAS indicates a looming retention and recruitment crisis in the judiciary in England and Wales, with an increasing number of salaried judges intending to leave the judiciary in the next five years which outstrips the number of fee-paid judges considering applying for a salaried judicial post. Almost all salaried judges are appointed from those who are fee-paid judges.⁸⁰

We are concerned by this growing trend and how it compounds the already worrying retention issues.

63. The impact of capacity issues is most keenly felt in London and the South-East. Judges allocated to this district cover large swathes of the country from Ipswich to Brighton.⁸¹ The “long-standing” issues in the region are evidenced in the increased delays, as outlined in Chapter 3, with the Master of the Rolls noting that there “have been vacancies for some 70 full-time salaried District Judges”.⁸² Anecdotal evidence suggests that this could be related to the high costs of living in the region and the increased number of private sector opportunities.⁸³ In our evidence session with Minister Sackman, she assured us that the current district judge exercise is for “80 vacancies in London and the south-east only” as means of providing targeted recruitment in the areas which are most under pressure.⁸⁴ At time of publication, it is unclear how successful these measures have been.

64. CONCLUSION

While we welcome the recent introduction of location-based advertising for full-time judicial roles, the civil judiciary is no longer an attractive profession. It is vital more is done to attract high performing candidates to the district-bench.

65. RECOMMENDATION

Any review into the County Court must include an evaluation of its judicial recruitment offer. This has to consider pay and progression opportunities, an assessment of the current working conditions, and evaluate the regional recruitment initiatives.

Court staff capacity

66. In 2023/24 HM Courts and Tribunals Service (HMCTS) employed an average of 16,422 full-time equivalent (FTE) employees, 90 per cent of whom were frontline staff operating in the court estate and interacting with court users. These figures led to total staff costs for the year to 31 March 2024 of over £700 million, up from the prior year and accounting for over a quarter of HMCTS’ total expenditure. In their written evidence to this inquiry, the Ministry of Justice (MoJ) was able to identify that the County Court accounted for just 2,764 FTE employees as at December 2024.

67. HMCTS has had a high staff turnover rate in recent years. In 2023/24 staff turnover⁸⁵ was 14.5 per cent, up from the 12.7 per cent in the previous year.⁸⁶ This was higher than the departmental staff turnover, at just over 11 per cent, but does not consider transfers of staff within the Civil Service, meaning the likely turnover rate is considerably higher. In the Annual Report and Accounts 2023/24, HMCTS identify Civil Service transfers as one reason for staff departure and explained that the increased turnover rate is “due to the number of people on fixed term contracts that came to an end” by March 2024.⁸⁷ Just over 11.7 per cent of total staff were agency workers, a small decrease on the year before, which was described by the HMCTS Chief Executive, Nick Goodwin as a “scheduled” reduction in workforce to reduce spend.⁸⁸ The 2024 Judicial Attitudes Survey conducted by University College London (UCL) found that 76 per cent of its respondents were “extremely concerned” over staff reductions.⁸⁹

68. The Association of HM District Judges told us of the problems caused by the low staff capacity:

The lack of staff has a direct impact on hearings. Documents are not placed on the Court paper file even when a party can demonstrate that they hand delivered it to Court. This a frequent problem requiring either hearings to be adjourned while documents are found or for a party to foresee the problem and bring a further copy to court. It also forces judges to search through the court email box to try and find documents that may have been sent to the Court electronically (but as Deputies do not have access to the email box this only assists certain judges). Further, it has been difficult for HMCTS to retain office staff. Many are agency workers, while others are on short term contracts. We have seen a large number of staff leave for better paid jobs or permanent contracts often within other parts of the civil service. As a result, there is a constant churn and necessity to train new staff which has to be done by the existing staff as there is no central training.⁹⁰

69. Deputy Head of Civil Justice, Lord Justice Birss, also described the benefits of retaining experienced court staff:

Experienced staff are, of course, more valuable. When there were a lot of agency staff—I am thinking of a few years ago—it was a problem. But when you go to a county court where there are experienced staff, you can tell the difference. So, of course, we want to have experienced staff, and we need to retain them. Retention is a problem in our system. Often, we have a difficulty—I am thinking of Cardiff—where other areas of the public sector recruit from inside HMCTS at a certain band, and the staff go because they get paid more money for the same band in another part. It is a constant frustration for us to see our good staff going to other parts of the public sector.⁹¹

70. The County Court is governed by the Civil Procedure Rules (CPR), a complex and detailed set of procedural rules which, the Master of the Rolls, Sir Geoffrey Vos, conceded are “completely impenetrable to ordinary people”.⁹² These rules are a cause of a significant number of staff queries from parties, many of which go unanswered or diverted to national phone lines and email inboxes.⁹³ The result of high turnover and poor retention is a revolving door of knowledge and experience of staff. Daniel Flury, Operations Director at HMCTS, aptly summarised the issue as “we get people in; we train them up; they depart; and we start all over again”.⁹⁴

71. In evidence to us, HMCTS officials were able to confirm that discussions with HM Treasury were underway with the aim to address the imbalance of pay bands across HMCTS and bring them in line with other departments.⁹⁵ While no specific funding relating to this was identified in the 2025 Spending Review, the settlement did commit an additional £450 million per year across all courts jurisdictions by 2028–29, compared to 2025–26. Whilst it is unclear how much of this funding will be allocated to the County Court, and how it will be split between resource and capital budgets, the funding could support efforts to address such pay disparities.

72. On our visit to both the Central London County Court and Northampton County Court, it was clear just how overstretched frontline staff are. The constant churn of staff alongside the “overstretching” of the service results in lengthy delays and reduced morale:

Courts across the country are understaffed, and the staff they have are chronically overworked, with high rates of burnout and excessive staff turnover. Particularly, CNBC and OCMC staff are clearly overworked, and there is clearly insufficient staff to deal with the matters.⁹⁶

We are pleased to see that average correspondence times are falling, according to the latest statistics, and at the CNBC they are now starting processing of email and written correspondence within 16 working days, down from the July 2023 peak of 37 working days.

73. Regional variation is also prevalent in court staffing. Areas such as Manchester Civil Justice Centre are noted in our evidence as better staffed than smaller, regional courts which suffer with higher levels of turnover and difficulties in recruiting. Minister Sackman and her officials identified areas of Wales as areas of effective staffing, with fewer problems arising from poor retention, and a more responsive service for court users.⁹⁷

74. CONCLUSION

The Committee would like to pay tribute to the dedication and hard work of frontline staff in the County Court. However, the current staffing crisis in HMCTS is untenable, impeding its ability to support County Court users and ensuring efficient access to justice.

75. RECOMMENDATION

A future review must include an in-depth assessment of the recruitment and retention crisis of the County Court, extending the existing discussions regarding HMCTS pay scales to include assessments of current and required workload capacities ensuring any additional resource is effectively allocated where it is needed most. This assessment needs to learn from areas of good practice such as Wales, and Manchester, and understand why these areas are more successful in retaining staff.

6 Access to justice

Litigants-in-person

76. Access to justice is a fundamental component of the Rule of Law; a foundation that lays the basis of the justice system in England and Wales. One of the primary means of ensuring access to justice is through publicly funded legal advice, more commonly known as ‘legal aid’. Introduced in 1949, legal aid sought to make legal advice more readily available for “persons of small or moderate means”.⁹⁸ Its original scope was broad, covering most types of claims, including all of those heard in the County Court. This provision not only promoted equality of arms between parties but also ensured that individuals could benefit from the legal profession’s expertise in navigating the complexities of the justice system.

77. Since then, legal aid has undergone continual reform which has reduced its scope and increased its eligibility criteria. In 2013, the Legal Aid, Sentencing and Punishment of Offenders (LASPO) Act significantly reduced the types of claims eligible for legal aid. As a result, fewer claimants are able to access affordable legal advice, so the number of legal aid practitioners has declined and ‘advice deserts’ have emerged across England and Wales. It is a widely held view that these changes have contributed to a significant increase in self-represented parties, commonly known as ‘litigants-in-person’.

78. In 2011, the Civil Justice Council (CJC) reported its concerns on the then proposed LASPO legislation. The report focussed on litigants-in-person across the civil justice system and concluded:

The design of the legal aid reductions and changes will take away routes to accessible early advice (including by the damage done to the advice sector, which in turn damages access to wider pro bono legal services) and leave intervention too late or denied altogether. As a result we will find more cases started by self-represented claimants that need not have been started, more cases where self-represented defendants are involved for longer than need be, and more cases not starting when they should be started so that they can be resolved. We will find problems clustering, with increasingly wide and serious consequences for the individual, for families, and the state.⁹⁹

The CJC went on to recommend that “everything must be done to simplify and demystify the law and the system, including its language” for litigants-in-person.¹⁰⁰

79. The CJC’s recommendations echoed a report, published in 1970, which concluded that County Court procedures were “too abstruse and complicated” for individuals to represent themselves effectively.¹⁰¹ Yet, over five decades later, the previous government in its 2019 Post-Implementation Review of LASPO, acknowledged that litigants-in-person continue to require greater support in navigating court procedure.¹⁰²

80. Our evidence highlights a shared concern among contributors: litigants-in-person continue to face significant challenges and require greater assistance. Dr Kate Leader, a leading academic on access to justice, recently published oral testimonies of litigants-in-person and their experiences of working through the court system. Interviewees found their interactions with the County Court “stressful and difficult” and many “felt talked down to, patronised or ignored by judges and lawyers who they felt resented their presence and felt they had a credibility deficit compared to legal professionals”.¹⁰³

81. Despite this ongoing commentary highlighting the need for more accessible information for self-represented parties, there remains a lack of reliable data on the true prevalence of litigants-in-person. Our evidence suggests that increasing numbers are a direct result of “cuts to legal aid services, and the current economic climate”.¹⁰⁴

82. The absence of comprehensive data limits the Ministry of Justice's (MoJ) ability to adequately understand the scale of the impact or evaluate the performance of current interventions. For instance, the Improving Outcomes Through Legal Support Grant and Online Support and Advice Grant had just £6 million in investment in 2025/26. These grants were set up with the aim to "support organizations in sustaining and improving access to early support on areas such as housing, welfare and debt, giving individuals support and advice, enabling them to resolve their problems as early as possible," and "provide support to help individuals navigate the process effectively".¹⁰⁵ However, it is unclear if this funding is proportionate to need.

83. Following the post-implementation review of LASPO, the National Audit Office (NAO) published a report in 2024 into the Government's management of legal aid. While the report found that LASPO had achieved its primary aim of significantly reducing legal aid spend, stakeholders continued to express concern over the "detrimental impact on the efficiency" the increase in litigants-in-person posed.¹⁰⁶ These downstream costs not only place additional strain on the operational capacity of the justice system, but also serve as a clear marker of diminished access to legal advice.

84. Law firms who submitted evidence to our inquiry raised concerns over the perceived increase in judicial leniency and the "benefit of doubt" given in cases with self-represented parties.¹⁰⁷ They argue that a lack of legal representation should not "automatically justify a lower standard of compliance".¹⁰⁸ While litigants-in-person may require additional judicial support, constraints on judicial and court capacity means this is not readily available. This ultimately creates a tension between helping self-represented parties navigate the system effectively and maintaining sufficient compliance with the Civil Procedure Rules (CPR).

85. CONCLUSION

Despite persistent calls, litigants-in-person are not adequately supported through the court process. The language used in court applications is inaccessible, court procedure is not explained, and there is limited support available. The insufficient data collection on the prevalence of litigants-in-person means the Ministry of Justice cannot understand how to direct and provide the support needed.

86. RECOMMENDATION

HMCTS must increase the collection and publication of data on litigants-in-person. This needs to include the type of claim, timeliness of issue to trial or settlement, and court location.

87. RECOMMENDATION

The Ministry of Justice and Civil Justice Council must publish guidance for litigants-in-person. It needs to explain the claims process, their responsibilities, and the implications of failing to comply with deadlines. This must be written in clear, accessible language and be available in accessible formats.

7 Condition of the court estate

The physical court estate

88. HM Courts and Tribunals Service (HMCTS) has delegated responsibility for the management of the court and tribunal estate, and for ensuring that buildings are well-maintained, secure, and able to deliver justice to its users. The County Court estate has significantly reduced over the last two decades; between 1997 and 2009, 25 County Court centres closed, and a further 78 have closed since 2010.¹⁰⁹

89. Currently, there are 195 court buildings in England and Wales that have at least one courtroom with a primary use for civil or family hearings.¹¹⁰ In our call for evidence, legal practitioners using the County Court estate described the condition of the estate as "less than ideal"¹¹¹ and "not fit for purpose".¹¹² We have heard examples of asbestos, collapsing ceilings, "chairs held together by gaffer tape",¹¹³ as well as rat and fly infestations.¹¹⁴ One member of the Association of HM District Judges,¹¹⁵ described their experience of the court estate:

For the last 7 years people attending my Court room have had to walk past buckets. Our Court's building Champion sits in an office with no ceiling, and a bucket in the doorway. It's no way to treat Court users or Court staff. That's before we tackle insect infestations, peeling wallpaper or collapsed bathroom tiling.¹¹⁶

The Personal Injury Bar Association (PIBA) provided numerous examples across the country of poorly maintained courts, it cited over 15 individual examples of maintenance issues, including:

The County Court at Leeds is in poor condition with exposed wiring and trip hazards. During the summer of 2022 the heating was "on" during the heat wave and the staff were unable to turn it "off" resulting in the building being closed and cases adjourned as the temperature was unsafe for judges, litigants and legal representation.¹¹⁷

PIBA went on to describe:

The County Court at Huddersfield does not have properly functioning heating, and the issues are not expected to be resolved until 2024. At the County Court at South Shields the leaking roof was full of maggots that came from rotting pigeons and the court ceiling collapsed giving rise to court closure whilst repairs were undertaken.¹¹⁸

90. We witnessed first-hand the poor conditions staff work in, with broken heating and out-of-service lifts, on our visit to the Central London County Court. Staff told us of moving large quantities of paper up and down stairs as lifts were often out-of-order, usually for months at a time, whilst other colleagues were working in coats and wrapped in blankets due to inadequate heating systems.

91. Where capital investment has clearly been made - courts such as Manchester Civil Justice Centre, Bristol Civil and Family Justice Centre and Exeter Law Courts - users report positive experiences with good availability of consultation rooms and greater accessibility measures.¹¹⁹ However, these examples are the clear minority.

92. The condition of the estate, with its collapsing roofs and reliance on buckets, exacerbates delays in County Court hearings. Practitioners have told us of a number of courtrooms that are unable to operate in summer due to the excessive heat and limited air conditioning, yet in winter broken heating continues to delay court proceedings.¹²⁰ The cumulative effect is a system increasingly unable to deliver timely outcomes, with staff, already stretched, occupied by maintenance issues. The Association of HM District Judges provided an example given by a District Judge of the consequential impacts of poor maintenance:

My main court is fine, but a local court has recently been closed as a result of a lack of maintenance over many years and urgent repairs now needed. This has resulted in an entire court "decanting" into my main court, causing chaos. Magistrates and a DJ have been forced, without consultation, to undertake private law hearings remotely because they are deemed less important (in terms of providing hearing space) than the courts which have been accommodated. I have been shunted from court to court and wasted many many hours of judicial time dealing with the problems that creates. Hearings have been lost and delayed as a result of court switches; parties attending the wrong court, papers not being at the necessary court etc.¹²¹

93. The Judicial Attitudes Survey 2024, an annual survey of the judiciary reporting on workloads, morale, and working conditions across all jurisdictions, stated that half of all salaried judges rated the maintenance of their court and tribunal buildings as poor or unacceptable.¹²² Only a third of respondents rated the physical quality and maintenance of their buildings as excellent or good. This response has been largely unchanged in a decade with 31 per cent of respondents in 2016 reporting the same conditions.¹²³

94. The Ministry of Justice (MoJ) have quantified the impact of closure due to maintenance to be less than 0.1 per cent of sitting days in the County Court between October 2021 and September 2023.¹²⁴ In their submission to the inquiry, the MoJ stated:

We know there are parts of the estate that provide substandard facilities for court users and that a significant proportion of the estate is old and at risk of mechanical failure due to core systems, such as heating and cooling, exceeding their life expectancy.¹²⁵

No further explanation was provided as to how the Department were planning to resolve, or even simply mitigate, the "substandard facilities".

95. Despite the deterioration in facilities, fees in the County Court system have consistently risen. Since 2007, law firms, like DWF Ltd, have noted the above inflation increase of on notice application fees from £75 to £275 by 2020.¹²⁶ The MoJ explained that some fees, such as money claims, recoup more than the costs of the service, allowing the Government to fund areas with no fees, or fees below cost.¹²⁷ The civil jurisdiction now generates over £534 million in income, with a further £61 million remitted under the Help with Fees scheme.¹²⁸ Court users and legal practitioners have expressed that there is “little confidence” that the increase in fee income is being put towards improving the condition of the court estate.¹²⁹

96. The coalition government’s 2010 austerity programme, introduced in response to the 2008 financial crisis, led to significant reductions in public spending to restore fiscal stability. The MoJ experienced substantial cuts, which extended to HMCTS as its executive agency. HMCTS’s capital budget, over £140 million in 2010, was progressively reduced and entirely withdrawn in 2013–14 and 2014–15, halting all investment and contributing to a growing maintenance backlog.¹³⁰ Meanwhile, its resource budget was cut by 23%—over 29% in real terms—between 2010 and 2015.¹³¹ On the ground, this resulted in closure of court information counters, increased dilapidation, and an ever-growing maintenance backlog. Minister of Courts and Legal Services, Sarah Sackman KC MP, referred to the “chronic underinvestment in our justice system over the last 14 years which is evident across the physical estate”.¹³²

97. In 2022, HMCTS published its Estate Strategy, which included both 5 and 10-year ambition plans which aimed “to improve the condition, resilience, and sustainability” of the court estate.¹³³ The first plan is set to report against its 5-year ambitions at the end of 2026, with an initial focus on court renewal and replacement. In January 2025, the National Audit Office (NAO) estimated the maintenance backlog stood at £1.3 billion across the entire court and tribunal estate.¹³⁴ The report goes on to say:

[HMCTS] prioritises work that addresses significant risks to court operations; significant risks to the health and safety of the judiciary, staff, users and the public; serious security risks; breaches of statutory compliance; and work that supports sustainability targets and utilities savings.¹³⁵

98. In August 2023, the then Lord Chancellor and Secretary of State for Justice, the Rt Hon Alex Chalk KC MP, announced that £220 million in additional capital funding would be made available, specifically allocated to court repair and modernisation over the next two years to March 2025.¹³⁶ Whilst this was welcomed by many stakeholders, we have heard that in reality “it [was] insufficient to tackle the long-term neglect”.¹³⁷

99. CONCLUSION

It is unacceptable that the court estate has been allowed to enter such disrepair due to years of capital underfunding. While we welcome the Minister’s acknowledgement of the “chronic” underinvestment within the court estate, this Government must end the cycle of underfunding.

100. CONCLUSION

We are concerned by HMCTS’ failure to recognise the importance of the condition of the physical estate for both the functioning of courts and the public’s perception of civil justice. We have both seen and heard of unacceptable examples of poorly maintained court buildings, its impact on staff morale, and the ability to deliver swift access to justice. We are concerned about the lack of transparency surrounding capital funding announcements in tackling the £1.3 billion court maintenance backlog and how successful its Estate Strategy will be in handling the scale of the backlog.

101. RECOMMENDATION

We recommend that the Ministry of Justice and HMCTS publish a detailed breakdown of how the £220 million in capital funding was spent between March 2023 and March 2025. The breakdown should include further information as to the type of maintenance and repairs completed, and at which courts they were completed, to aid transparency in Government spending. This detailed breakdown must be published by the end of March 2026.

102. RECOMMENDATION

HMCTS must collect and publish regular data on the condition of the court estate. This is imperative to informing preventative repairs.

Accessibility of the court estate

103. Against the backdrop of real terms cuts in the Department's capital budget, in oral evidence to us, Minister Sackman noted that the current Government was "making additional investment over and above what the previous Government put into [court] buildings" not only for maintenance but ensuring court buildings are fully accessible.¹³⁸

104. The Equality Act 2010 sets out the framework for promoting and preventing discrimination, under which both the MoJ and HMCTS must take "reasonable steps" to prevent people with disabilities from being put at a "substantial disadvantage" compared to non-disabled individuals.¹³⁹ As the Equality and Human Rights Commission (EHRC) noted in their response to HMCTS's 'Fit for future' consultation on the court estate, "the duty to make reasonable adjustment is anticipatory, which means that organisations must think in advance and on an ongoing basis about the requirements of disabled people and the adjustments that may have to be made for them".¹⁴⁰ Consequently, physical access to the court estate is "paramount".¹⁴¹

105. Significant parts of the court estate are old, refurbished buildings spanning from the Victorian era to the 1970s alongside modern replacements. As with most buildings, they were built to the standards required at the time and as a result venues often lack feasible entry points for those requiring disabled access. Under Section 20 of the Equality Act 2010, the duty to make reasonable adjustments includes taking steps to avoid any disadvantage, this includes removing, altering or providing a reasonable means of avoiding the physical feature, where it would be reasonable to do so. Evidence we received suggests that several courts across England and Wales do not have adequate access arrangements for litigants, witnesses, and legal practitioners requiring wheelchair access.

106. The MoJ provided the Committee with up-to-date information as of May 2025:

There are 195 court buildings in England and Wales that have at least one courtroom with a primary use for civil or family hearings. Of these, 160 provide step free access via the main public entrance. Of the remaining 35 that currently do not provide step free access via the main public entrance, 33 have step free access via other means, such as staff entrances.¹⁴²

That results in two court buildings not providing step free access via any entrance for wheelchair users, with one currently closed to the public.¹⁴³

107. The PIBA's evidence noted the following courts failed to permit wheelchair access:¹⁴⁴

- Mansfield County Court;
- Brentford County Court;
- Darlington County Court;
- Edmonton County Court;
- Hertford County Court;
- Lewes Combined Court Centre;
- Taunton Crown, County and Family Court.

108. Such discrepancies in accounts pose further questions as to the true accessibility of the Court estate. For instance, whilst visiting the Central London County Court, we observed out-of-order lifts, and noted that access through the Royal Courts of Justice was not step-free. Minister Sackman acknowledged that whilst parts are not fully accessible, HMCTS provide reasonable adjustments "to avoid treating people less favourably because of their disability" in line with Section 20 of the Equality Act 2010. The Master of the Rolls also acknowledged the very "real issues" of the physical estate and disabled access.¹⁴⁵ However, it is unclear what actions are currently being taken to address this.

109. It is important to note that whilst entry to court buildings is the first hurdle faced by users, once inside the court, access to the relevant court room and facilities, such as conference and small hearing rooms, are also problematic. We have heard of court rooms often failing to facilitate disabled practitioners and claimants due to restricted mobility around fixed benches. This also

inhibits disabled practitioners taking instruction at late notice due to the limited accessibility of a court room where a case is listed.¹⁴⁶

110. CONCLUSION

We recognise the difficulty in retrofitting old court buildings to meet the required accessibility standards set out in Section 20 of the Equality Act 2010. However, it is not an impossible task as demonstrated by over 160 step-free court buildings in England and Wales.

111. RECOMMENDATION

All works to increase accessibility, in all of its aspects, of the court estate must be prioritised and delivered at pace. It is not satisfactory for lift repairs to take months, or for disabled users to be taken through back entrances in order to access the County Court. Any review must cover accessibility for both users and staff. There should be measurable targets, a clear timeline and a fully costed budget for such improvements to be made.

112. RECOMMENDATION

HMCTS must introduce a standardised process by which Court and judicial listing staff proactively engage with court users on any access requirements for litigants, witnesses or legal practitioners prior to listing cases.

8 Digitisation

HMCTS Reform programme

113. In 2016, the Ministry of Justice (MoJ), alongside the Judiciary and HM Courts and Tribunals Service (HMCTS) launched a £1 billion programme looking to modernise the justice system by making it “more straightforward, accessible and efficient”.¹⁴⁷ This was called the HMCTS Reform programme (Reform) and originally comprised of 44 projects across civil, family, tribunals, and crime as well as projects looking into operations, property, and future hearings.¹⁴⁸

114. For civil justice, and the County Court, the initial ambition was for an end-to-end digital service focussing on possession, enforcement and damages claims. What followed was a continual modification and reduction of the programme, with core projects re-scoped and eventually descope altogether. The change of ambition was a result of a range of factors, notably the impact of the covid-19 pandemic and, as the National Audit Office (NAO) concluded, a lack of understanding around the complexity of its initial ambitions.¹⁴⁹

115. In March 2023, HMCTS announced a third extension to the timetable, extending the completion date to March 2024. On the announcement of this extension, Nick Goodwin, Chief Executive of HMCTS, provided an update on the civil projects of Reform:

In civil, we are making really good progress in extending functionality to our reformed services. We'll take a measured approach, delivering the remaining services in online civil money claims, civil enforcement, bulk claims and damages over the next year.¹⁵⁰

Alongside this, the MoJ provided our predecessor committee with an update that, on conclusion of Reform, 86 per cent of County Court claims would be provided by a digital system, and all civil Reform services would be expanded to provide a fully digital ‘start-to-finish’ service.¹⁵¹

116. On 29 February 2024, HMCTS extended the completion dates for a fourth time, descope some of the original civil projects:

Reformed services are having a significant impact on those who need our justice system, as well as helping the most vulnerable in our society. Uptake of these services – including divorce, money claims, family public law and immigration and asylum – has been strong [...] But the remaining services in the civil jurisdiction and family private law are the largest and most complex services in the CFT Programme. As a result, we’ve decided to extend the completion date for the overall Programme from March 2024 to March 2025, to make sure we get this right.

Civil enforcement changes will be removed from our plans, to help us focus on the large services that we have already started to reform. Our plans still include providing the ability for users to issue warrants of control to enforce County Court judgments digitally through the reforming Online Civil Money Claims Service (OCMC). We instead plan to deliver change to all other enforcement process outside of the Reform Programme, subject to funding.¹⁵²

117. On 13 February 2025, Nick Goodwin wrote to us to provide an update on the final delivery phase of the Reform programme, setting out the programme’s civil achievements:

Fourteen paper-based processes – from small civil money claims disputes, to divorce proceedings and the management of criminal cases – are now modern digital services, with over 2 million cases submitted online to date.¹⁵³

He went on to set out the “final phase adjustments” which “give [HMCTS] the confidence [to] deliver the final stage of the programme”:

In civil, priority will be given to completing end-to-end journeys for simple cases up to £25k for litigants in person and for all values of claim for legally represented users.

[HMCTS] plans no longer include bulk claims, warrants of control, damages claims for litigants in person, multi-party claims involving unrepresented users, and some supporting features including bulk scanning of paper applications.¹⁵⁴

Goodwin went on to say that the civil scope reductions will:

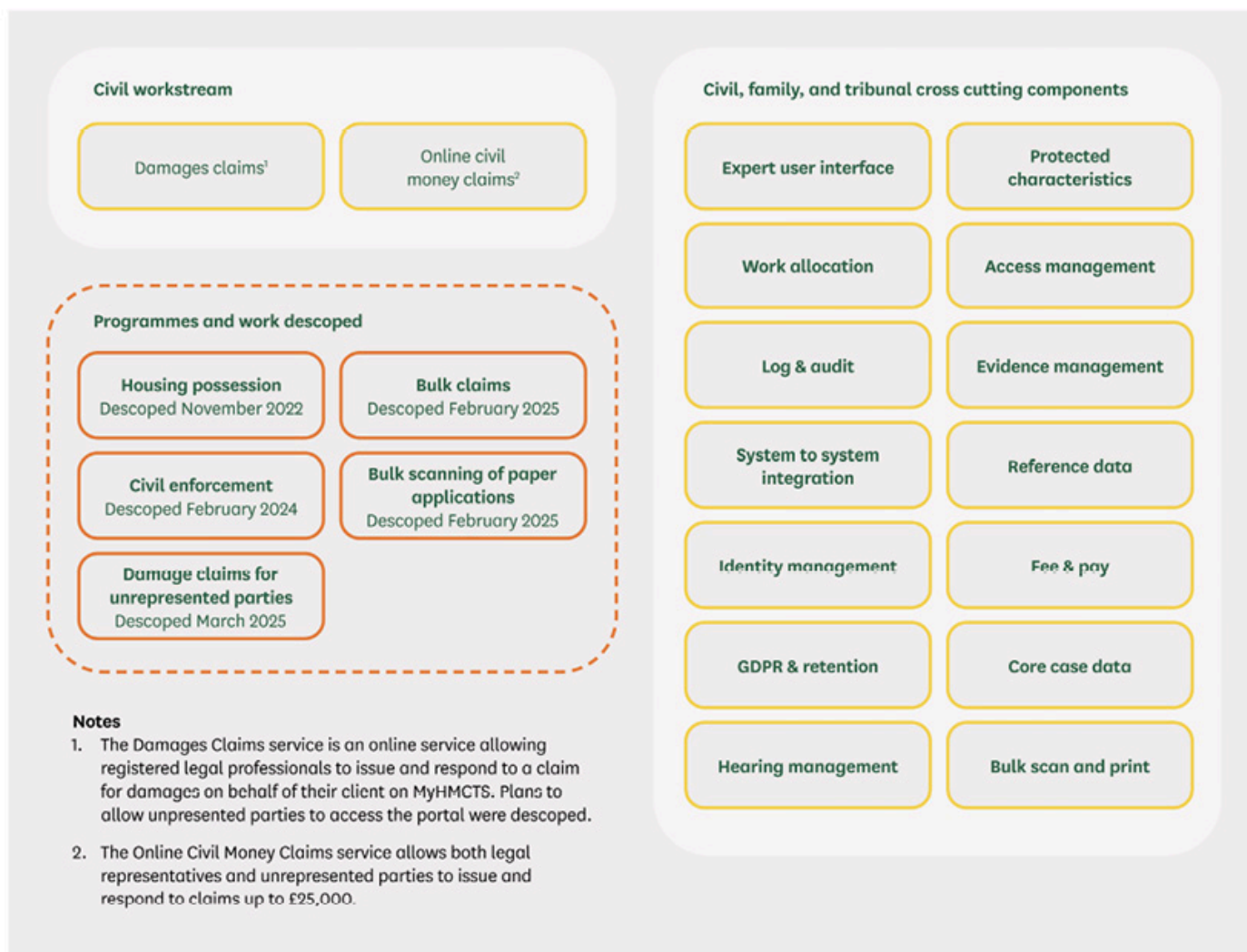
Leave many civil cases not yet being delivered digitally and significant ‘dual-running’ of new systems alongside old. The descope of bulk claims means that a large volume of cases issued through this service will continue to be managed on paper, which means more complexity for staff and judges, and a less consistent service for users.

To address this, we will continue to work to identify further funding to digitise the civil jurisdiction and complete digitisation of County Court processes, building on the strong platform we have already delivered.¹⁵⁵

The Reform programme ultimately culminated in the OCMC and the Damages Claims Portal (DCP) for the County Court.

Fig. 3: HMCTS Reform Programme - Civil Workstream

HMCTS Reform Programme – Civil Workstream



118. Master of the Rolls and Head of Civil Justice, Sir Geoffrey Vos, told our inquiry that the Reform programme would only digitise up to 23 per cent of County Court cases.¹⁵⁶ HMCTS agreed with this figure, but during their evidence to us stated that 64 per cent of all County Court claims were end-to-end digital services. This figure includes claims that start and finish on existing legacy systems such as Money Claims Online (MCOL) which were not products of Reform.¹⁵⁷

119. The Civil Court Users Association criticised the Reform programme's impact labelling it a "damp squib" and stating there has been "very little in terms of actual, transformational reform".¹⁵⁸ They went on to highlight the limited impact on the ground describing the "general perception amongst many court users is that the priority within the MoJ and HMCTS is to supply the bare minimum service".¹⁵⁹ The Association of Consumer Support Organisation (ACSO) criticised HMCTS' approach to reform:

The 'Cinderella Service' status of the civil justice system in England and Wales is a regrettable indictment of a long period of underfunding, rushed and ill-thought-through changes and lack of constructive engagement with consumers, their representatives and other professionals in the system itself.¹⁶⁰

120. The Reform programme had initially sought to digitise both possession and enforcement services. While HMCTS has confirmed that once the Renters Rights Bill receives Royal Assent and comes into force, a new possession service will be launched, the future of enforcement's digitisation is unclear. Described as "lacking in modernity", enforcement of judgments remains the "Achilles heel" of the County Court, characterised as both slow and cumbersome. At the time of publication, the Renters Rights Bill has not yet received Royal Assent.¹⁶¹

121. Bulk claims, also part of the initial ambition, were descope as part of the many revisions of the Reform programme. MoJ officials informed us that bulk claims account for 75 per cent of money claims raised in the County Court and as such the completion of this project would have dramatically increased the number of claims processed digitally. These claims continue to

utilise Caseman, a legacy system, and paper processes at local courts.

122. Dr Natalie Byrom, a leading policy advisor who was seconded to the MoJ as an expert advisor on data relating to the Reform programme, described the constraints on effective scrutiny of the project:

It is a source of considerable frustration to me, and, no doubt, to Members, that we are now eight years on from the publication of the vision for the courts “Transforming our justice system”. We have spent over £1 billion in that time. Only 24 of the 44 projects that were meant to be in scope as part of the HMCTS digital reform programme have been marked as complete, but we do not have enough information from the Courts Service even to be able to assess what “complete” means—whether those projects have delivered fully against their original scope—because HMCTS has not recorded things fully.¹⁶²

Dr Byrom went on to highlight the County Court as bearing “the brunt of the failure” of Reform, noting that court users are “dealing with off-ramps and on-ramps, and back into paper, which creates huge inefficiencies for people”.¹⁶³

123. The dual-running of systems is a result of the over-ambition of Reform. The Master of the Rolls, Sir Geoffrey Vos set out:

Many cases have data stored or processed in two or more of four irreconcilable mediums: (a) paper, (b) the legacy computer system called Caseman, (c) local court computer systems, and (d) the new digital systems created by Reform.¹⁶⁴

Sir Geoffrey went on in his oral evidence to describe that “the worst of it is that we have overlapping systems so every case in the county court, or nearly every case will have some paper and some digital”.¹⁶⁵

124. Despite being an “online service”, the DCP requires local courts to print off files and distribute them to the relevant parties. Keoghs LLP’s evidence highlighted the problems arising from transferring cases from the DCP to paper, noting that files are often “lost or delayed for months” once cases drop out of the DCP.¹⁶⁶ ACSO argue this is down to “premature rollouts, delayed projects and increased costs” as:

HMCTS chose not to request the input of the Solicitors Regulation Authority (SRA) in the design and operation of the DCP, despite issuing court proceedings being a reserved legal activity. Doing so, and consulting with the legal profession more in the design and build of the portal as a whole, could have avoided many of the subsequent challenges in its operation.¹⁶⁷

This was echoed by DWF LLP who described a “failure to take on feedback; or to fix/consolidate before releasing new functions”¹⁶⁸ whilst Weightmans LLP simply described it as “not fit for purpose”:

users report concern over a two-tier system; those cases remaining in the DCP have truncated and ‘too short’ timescales for directions which risk injustice for both parties and are not conducive to resolution. Cases falling out of the DCP, or were never started in it, are subject to significant and unreasonable delays in both listing for case management and for trial.¹⁶⁹

125. The DCP was not the only civil Reform project whose “rollout appear[ed] haphazard, rushed and poorly communicated” as the Online Civil Money Claims Service (OCMC) has also been beset by “technical problems”.¹⁷⁰ OCMC has been labelled a “terrible abomination”,¹⁷¹ whilst “the system suffers badly from the lack of any digitisation in the latter stages leading to the irony of a system part-digital/part paper being worse than a system that was wholly paper.”¹⁷²

126. CONCLUSION

The Reform programme was over ambitious and ultimately under-delivered. We acknowledge the diverse range of jurisdictions that fall within the County Court which may have contributed to the challenges the programme faced. However, we are not satisfied with HMCTS’ evidence: it offered weak justifications and failed to adequately acknowledge the extent to which the Reform Programme failed to deliver the necessary, and promised, digital transformation of the County Court.

127. CONCLUSION

The civil projects that were delivered under the Reform programme were not sufficiently tested with practitioners in mind. As a result, the avoidable failures of Reform have led to unacceptable amounts of dual running, with one claim requiring interactions with multiple systems, and further inefficiencies in the County Court.

128. RECOMMENDATION

All future digital reforms must be co-designed with users and stakeholders and should not be rolled out until they have proven reliable through extensive piloting and testing.

129. RECOMMENDATION

The Ministry of Justice must, as a matter of urgency, review all descoped work and prioritise its digitisation. Without this, we are left with an incomplete and inefficient system at significant public expense.

130. RECOMMENDATION

A single case management system must be introduced to provide real time status updates for all cases, integrating both Reform and legacy systems.

Use of paper in the County Court

131. Prior to the completion of the Reform programme, Nick Goodwin, Chief Executive of HMCTS, wrote to the Committee explaining that all Reform products, including the DCP and OCMC, “allow users to engage with their cases digitally end-to-end, enabling them to apply online, attach documentation, upload evidence, view the progress of their case, and receive a final case outcome”.¹⁷³ However, the limit for most uploads is ten megabytes (10mb) across both legacy and Reform products, an “impractical” limit with court bundles significantly larger, which results in many having to be submitted on paper.¹⁷⁴

132. In 2024/25, the County Court used 76,545 reams of A4 paper, costing the taxpayer over £378,000.¹⁷⁵ Over the last three years, the County Court’s reliance on paper is estimated to have cost just under £1.1 million, totalling a staggering 116 million pages of A4. When stacked, this is equivalent to the height of over 145 Elizabeth Towers, which stands at 96 metres tall.¹⁷⁶ Such “over-reliance” on paper was evident on our visits to the Central London County Court and Civil National Business Centre (CNBC), where we witnessed first-hand the scale of paper usage across the County Court.¹⁷⁷

133. Despite the transfer of paper files being a business-as-usual operation, we have frequently heard of issues relating to missing or incomplete files:

There are mountains of paperwork among which are our pleadings, our applications, our trial bundles, and our witness statements, which very often are missing when we turn up at court to proceed with the hearings.¹⁷⁸

As the CNBC operates as the central processing centre, it transfers over 2000 files to local courts each week. This transfer of paper files through postal services such as DX, costs HMCTS nearly £350,000 a year.¹⁷⁹ Solicitors describe the situation as “frustrating” and “disruptive”, whilst “legal representatives are well used to bringing duplicate copies to hearings so as to assist the judiciary”.¹⁸⁰

134. The Master of the Rolls, Sir Geoffrey Vos’s solution to the problem of paper, which results in “months of in-built delays” and “five storeys of paper files” at the CNBC, is more effective digitisation.¹⁸¹ He notes that staff are “fed up” of paper, and as Head of the Civil Judiciary he stated he is doing all he can to reduce the amount of paper but warned:

we will not be able to do that while five floors of paper continue to be hoarded...while you have a paper system you have almost a paper warehouse in Northampton.¹⁸²

135. As cases work through digital systems and then go “off-piste” into paper processes, the “off-ramps and on-ramps” result in a myriad of reference numbers for one claim.¹⁸³ In our roundtable with legal practitioners, it became clear that this is a factor resulting in incomplete files as there is no clear identifier for staff to ensure all information from the “patchwork” of systems is present, ultimately compounding delays as the judiciary wait for a completed bundle.¹⁸⁴

136. CONCLUSION

It is very difficult to understand why the County Court continues to rely on paper files, which need to be shipped around the country at great cost. Paper is a serious cause of the delays in the County Court, caused by a “patchwork” of systems and case

reference numbers, and standing at direct odds with the Ministry of Justice’s commitment to digital transformation.

137. RECOMMENDATION

All claims must be issued a single reference number regardless of the “off-ramps and on-ramps” between paper and digital systems.

138. RECOMMENDATION

Use of postal services for sending paper files must be replaced with email or other electronic methods. Postal options should be an opt-in service as already implemented across multiple Government agencies to effectively mitigate against digital exclusion.

139. RECOMMENDATION

HMCTS must enhance existing electronic systems to support the upload of larger documents for all types of claims heard in the County Court.

9 Other opportunities for reform

140. This chapter explores other opportunities for County Court reform that have not been covered in earlier chapters.

Alternative dispute resolution and mediation

141. Alternative dispute resolution (ADR) refers to methods of resolving disputes without going to court. The most common form of ADR is mediation: a confidential process in which an independent third party assists those in dispute in reaching a mutually acceptable agreement.

142. Following the 2023 Court of Appeal decision in *Churchill v Merthyr Tydfil CBC*, courts now have broader discretion to order or encourage parties to engage in ADR.¹⁸⁵ In delivering the judgment, the Master of the Rolls, Sir Geoffrey Vos emphasised the benefits of ADR in civil disputes:

Even with initially unwilling parties, mediation can often be successful. Mediation, early neutral evaluation and other means of non-court-based dispute resolution are, in general terms, cheaper and quicker than court-based solutions.¹⁸⁶

143. Since May 2024, mediation has become mandatory for small claims valued at under £10,000, with HMCTS offering free mediation for small track claims through the Small Claims Mediation Service (SCMS). On our visit to the Civil National Business Centre (CNBC) we were pleased to hear that the SCMS is continuing to maintain strong performance following an increase in demand with a record 7,638 referrals in January 2025.

144. The Federation of Small Businesses welcomed the introduction of compulsory mediation stating that it “hopes this may contribute towards earlier resolution of many cases which should free up judicial time [...] and hence reduce delay”.¹⁸⁷ The Registry Trust Limited also expressed support noting that:

Requiring creditors to attempt alternative dispute resolution before issuing a claim could be beneficial in terms of court workload and outcomes for both claimants and defendants. In Germany, creditors must send formal warnings and allow debtors time to negotiate before taking a claim to court. In Sweden, rather than immediately issue a judgment, many consumer debt cases are referred to a debt enforcement agency that helps mediate solutions.¹⁸⁸

145. Further reforms came into effect in October 2024, when amendments to the Civil Procedure Rules (CPR) enabled courts to order parties to engage in ADR in all claims in excess of £10,000.

146. CONCLUSION

Mediation is a viable out of court route with early signs of success in the County Court. It offers claimants a quicker route to seeking justice, one not beset by delays or missing files.

147. RECOMMENDATION

As part of any future review into the County Court, an evaluation of mandatory mediation must be undertaken to understand whether it can be effectively deployed in other claim types.

Technology and artificial intelligence

148. As part of this inquiry, we visited the Central London County Court, which operates differently from typical County Court centres. Much of its work filters down from the High Court, meaning the majority of cases do not pass through centralised systems or CNBC, but rather interact with other technologies and software used throughout the Royal Courts of Justice. Of note is the use of CE Filing, lauded as the preferred e-filing systems by legal professionals. The Master of the Rolls, Sir Geoffrey Vos, explained that despite CE Filing being well-liked for its simplicity, “it is not fit for the future”.¹⁸⁹ He went on to explain:

We have overlapping systems, so every case in the county court, or nearly every case, will have some paper and some digital—or will have been on digital on the modern system and will also be recorded on what is called CaseMan. That is a legacy system that is very old fashioned, has been there for literally donkey’s years and simply cannot interact with the other digital system.¹⁹⁰

149. Standardising systems can generate large cost savings, “enforcing common standards for document types” and having “lower maintenance costs”.¹⁹¹ In turn this increases operational efficiency and the swifter delivery of justice.

150. Most legal professionals now operate in almost paperless environments, using online bundles and technologies to produce compliant documentation and communicate with the Court. Yet the County Court’s e-filing system is widely criticised and is the result of “piecemeal” reform as “the County Court has long been the poor relation of the justice system when it comes to technology”.¹⁹² The current system cannot handle large document uploads, or digital bundles making it “outdated” and resulting in more paper copies across the system. Sir Geoffrey Vos critiqued the system as “a problem of an analogue system in a digital age”.¹⁹³

151. There are, however, emerging opportunities for the County Court. One such opportunity is to become an early adopter of artificial intelligence (AI). Notable developments in this space includes the first Solicitor’s Regulatory Authority (SRA) approved AI-driven law firm, Garfield.Law Ltd, a large language model that “can handle the entirety of a small-claim track debt claim”.¹⁹⁴ Both Sir Geoffrey Vos, Master of the Rolls and Lord Justice Birss, Deputy Head of Civil Justice, have been strong advocates of AI within the justice system with the latter explaining:

Large language models appear to be able to produce high quality summaries of significant volumes of text. If we could harness that in the justice system one could imagine, for example, a system in which most sets of papers which were to go before a judge to be pre-read before a hearing would arrive with a 1-page summary of what the case was about. This would be in order to assist the judge and speed up their ability to prepare the case... The AI is not there making the decision. The judge would still read into the case in the normal way and then hear the parties, but their reading-in will be more efficient than it would otherwise have been.¹⁹⁵

152. The Judiciary are at the forefront of AI integration into the justice system, and in December 2023, the Master of the Rolls, Senior President of Tribunals and the Lady Chief Justice, issued joint judicial guidance on the use of AI. The guidance encompassed three broad principles: understanding how generative AI works, avoiding confidential information inputs, and reviewing any output it produces.¹⁹⁶

153. In November 2023, the then Lord Chancellor and Senior Judiciary set out a new vision for the future of civil and family courts and tribunals services, setting out a bold ambition to harness AI and technology.¹⁹⁷ In their oral evidence to us, the MoJ confirmed that they have established a Justice AI Unit looking at potential reforms.¹⁹⁸ Minister for Courts and Legal Services, Sarah Sackman KC MP, reassured the Committee that such “pilots need to show that they are safe and robust” and that the MoJ will “demand the highest standards of accuracy”.¹⁹⁹

154. CONCLUSION

Despite the bold ambitions of the Ministry of Justice, the piecemeal approach that has been taken to digitisation hampers any intentions of adopting a fully digital court process. Existing systems inhibit the early adoption of AI or a move to digital court bundles despite the innovation occurring in the legal sector.

155. RECOMMENDATION

Following the completion of the £1 billion Reform Programme, HMCTS must prioritise the roll out of existing systems from other jurisdictions, such as CE Filing, which are well-regarded by legal professionals. These should not be replaced for the sake of change alone; instead, efforts must focus on integration and interoperability, ensuring successful tools are preserved and enhanced.

156. RECOMMENDATION

The Ministry of Justice must launch a consultation, into how it plans to effectively use AI to improve the performance and operations of the County Court and report its conclusions by the end of 2026.

10 Conclusions on the Work of the County Court

157. CONCLUSION

The County Court is the ‘Cinderella service’ of the justice system in England and Wales. It is beset by delays as a result of a failed attempt at digital reform, recruitment and retention issues, and a complex and dysfunctional “patchwork” of outdated paper-based and digital systems.

158. CONCLUSION

The causes of the inefficiencies and delays in the County Court are well-established, and openly recognised by Ministers and officials, yet it is unclear how HM Courts and Tribunals Service (HMCTS), together with the Judiciary and the Ministry of Justice, intends to address them. The recent reviews into both sentencing and the criminal courts, highlight an absence of any attention or commitment to improving the dire situation currently facing the County Court. The Committee found that such problems would be all the greater without the highly commendable efforts of court staff to operate a system that ultimately fails to deliver civil justice.

159. RECOMMENDATION

We recommend an urgent and comprehensive, root-and-branch review of the County Court. This review must be launched by Spring 2026 and encompass recruitment and retention challenges within both the Judiciary and HMCTS, establish a realistic and sustainable plan for future digitisation and capital investment, and explore the future role of artificial intelligence. The overarching goal must be to reduce the systemic delays and inefficiencies entrenched across the County Court. It is not tenable to continue without fundamental reform.

Conclusions and recommendations

Role of the County Court

1. The criminal justice system is often the focus of mainstream attention and gets recognition for delivering justice, but with over a million claims each year, and a vast jurisdiction, the County Court is where most citizens and businesses encounter the justice system. It is imperative that the improvement of the County Court becomes a key priority of the Ministry of Justice. (Conclusion, Paragraph 16)

Delays in the County Court

2. 'Justice delayed is justice denied' has never been more relevant to the work of the County Court: the current level of delays is unacceptable. Whilst we recognise the pandemic significantly contributed to the backlog in cases, the available data clearly shows it only exacerbated existing trends. The rising caseload, and increased delays were in motion before 2020, and post-pandemic there has been little by way of improvement. (Conclusion, Paragraph 30)

3. The civil justice quarterly statistics do not aid transparency or allow for effective data-led scrutiny into the performances of individual courts. The County Court is known to house significant regional variation across England and Wales yet there is no evidence of pro-active measurement of these regional differences, analysis of why such variation occurs, or sharing of good practice. (Conclusion, Paragraph 31)

4. HMCTS must collect and publish data on individual court and tribunal performances to allow for the identification of regional disparities, and support investment planning in reducing County Court delays. The data must include the timeliness of pre-trial stages, rates of settlement and enable HMCTS' performance to be measured against published key performance indicators. (Recommendation, Paragraph 32)

5. As part of any future review, HMCTS must develop a manageable programme to reduce the delays to pre-2015 levels by the end of this Parliament. (Recommendation, Paragraph 33)

6. We recognise the role that block listing plays in providing flexibility to the schedule considering the high settlement rate in the County Court. However, we have heard concerns that it negatively impacts court users through financial implications and the increased frustrations of all parties resulting in more people settling as a means to end the cycle of uncertainty. This ultimately undermines trust in the system. (Conclusion, Paragraph 41)

7. HMCTS, together with the Judiciary, must work together to collect the necessary data on listing and settlement rates to allow for data-informed listing practices ensuring any over-listing is minimised. (Recommendation, Paragraph 42)

8. Litigants must be able to recover the legal, travel, and subsistence costs from HMCTS wasted as a result of over-listing and/or poor court administration preventing their cases from being heard. (Recommendation, Paragraph 43)

9. HMCTS, and the Ministry of Justice, must facilitate the greater use of remote hearings, working alongside the Senior Judiciary to provide national guidance outlining when virtual hearings should be used. (Recommendation, Paragraph 44)

Contacting the County Court

10. Despite its intended aim of simplifying the operation of the County Court, the centralisation of essential court operations has had a devastating impact on the delivery of justice, entrenching the postcode lottery and results in debilitating delays for all parties. The current methods of contacting a county court do not work. Users cannot find the necessary contact information, and centralised inboxes and phone numbers appear unmonitored as they fail to provide the required response rate. (Conclusion, Paragraph 53)

11. The CNBC must be integrated with local court case management systems to improve coordination and responsiveness. Allocated claims handlers and a clear point of contact must be introduced to ensure claimants can speak with someone knowledgeable and responsible for their case as it progresses through the County Court system. (Recommendation, Paragraph 54)

12. 'Court and tribunal' finder must be updated with up-to-date information about each county court, what type of claims they hear and all essential contact information. (Recommendation, Paragraph 55)

Judicial and staff capacity

13. While we welcome the recent introduction of location-based advertising for full-time judicial roles, the civil judiciary is no longer an attractive profession. It is vital more is done to attract high performing candidates to the district-bench. (Conclusion, Paragraph 64)

14. Any review into the County Court must include an evaluation of its judicial recruitment offer. This has to consider pay and progression opportunities, an assessment of the current working conditions, and evaluate the regional recruitment initiatives. (Recommendation, Paragraph 65)

15. The Committee would like to pay tribute to the dedication and hard work of frontline staff in the County Court. However, the current staffing crisis in HMCTS is untenable, impeding its ability to support County Court users and ensuring efficient access to justice. (Conclusion, Paragraph 74)

16. A future review must include an in-depth assessment of the recruitment and retention crisis of the County Court, extending the existing discussions regarding HMCTS pay scales to include assessments of current and required workload capacities ensuring any additional resource is effectively allocated where it is needed most. This assessment needs to learn from areas of good practice such as Wales, and Manchester, and understand why these areas are more successful in retaining staff. (Recommendation, Paragraph 75)

Access to justice

17. Despite persistent calls, litigants-in-person are not adequately supported through the court process. The language used in court applications is inaccessible, court procedure is not explained, and there is limited support available. The insufficient data collection on the prevalence of litigants-in-person means the Ministry of Justice cannot understand how to direct and provide the support needed. (Conclusion, Paragraph 85)

18. HMCTS must increase the collection and publication of data on litigants-in-person. This needs to include the type of claim, timeliness of issue to trial or settlement, and court location. (Recommendation, Paragraph 86)

19. The Ministry of Justice and Civil Justice Council must publish guidance for litigants-in-person. It needs to explain the claims process, their responsibilities, and the implications of failing to comply with deadlines. This must be written in clear, accessible language and be available in accessible formats. (Recommendation, Paragraph 87)

Condition of the court estate

20. It is unacceptable that the court estate has been allowed to enter such disrepair due to years of capital underfunding. While we welcome the Minister's acknowledgement of the "chronic" underinvestment within the court estate, this Government must end the cycle of underfunding. (Conclusion, Paragraph 99)

21. We are concerned by HMCTS' failure to recognise the importance of the condition of the physical estate for both the functioning of courts and the public's perception of civil justice. We have both seen and heard of unacceptable examples of poorly maintained court buildings, its impact on staff morale, and the ability to deliver swift access to justice. We are concerned about the lack of transparency surrounding capital funding announcements in tackling the £1.3 billion court maintenance backlog and how successful its Estate Strategy will be in handling the scale of the backlog. (Conclusion, Paragraph 100)

22. We recommend that the Ministry of Justice and HMCTS publish a detailed breakdown of how the £220 million in capital funding was spent between March 2023 and March 2025. The breakdown should include further information as to the type of maintenance and repairs completed, and at which courts they were completed, to aid transparency in Government spending. This detailed breakdown must be published by the end of March 2026. (Recommendation, Paragraph 101)

23. HMCTS must collect and publish regular data on the condition of the court estate. This is imperative to informing preventative repairs. (Recommendation, Paragraph 102)

24. We recognise the difficulty in retrofitting old court buildings to meet the required accessibility standards set out in Section 20 of the Equality Act 2010. However, it is not an impossible task as demonstrated by over 160 step-free court buildings in England and Wales. (Conclusion, Paragraph 110)

25. All works to increase accessibility, in all of its aspects, of the court estate must be prioritised and delivered at pace. It is not satisfactory for lift repairs to take months, or for disabled users to be taken through back entrances in order to access the County Court. Any review must cover accessibility for both users and staff. There should be measurable targets, a clear timeline and a fully costed budget for such improvements to be made. (Recommendation, Paragraph 111)

26. HMCTS must introduce a standardised process by which Court and judicial listing staff proactively engage with court users on any access requirements for litigants, witnesses or legal practitioners prior to listing cases. (Recommendation, Paragraph 112)

Digitisation

27. The Reform programme was over ambitious and ultimately under-delivered. We acknowledge the diverse range of jurisdictions that fall within the County Court which may have contributed to the challenges the programme faced. However, we are not satisfied with HMCTS' evidence: it offered weak justifications and failed to adequately acknowledge the extent to which the Reform Programme failed to deliver the necessary, and promised, digital transformation of the County Court. (Conclusion, Paragraph 126)

28. The civil projects that were delivered under the Reform programme were not sufficiently tested with practitioners in mind. As a result, the avoidable failures of Reform have led to unacceptable amounts of dual running, with one claim requiring interactions with multiple systems, and further inefficiencies in the County Court. (Conclusion, Paragraph 127)

29. All future digital reforms must be co-designed with users and stakeholders and should not be rolled out until they have proven reliable through extensive piloting and testing. (Recommendation, Paragraph 128)

30. The Ministry of Justice must, as a matter of urgency, review all descoped work and prioritise its digitisation. Without this, we are left with an incomplete and inefficient system at significant public expense. (Recommendation, Paragraph 129)

31. A single case management system must be introduced to provide real time status updates for all cases, integrating both Reform and legacy systems. (Recommendation, Paragraph 130)

32. It is very difficult to understand why the County Court continues to rely on paper files, which need to be shipped around the country at great cost. Paper is a serious cause of the delays in the County Court, caused by a "patchwork" of systems and case reference numbers, and standing at direct odds with the Ministry of Justice's commitment to digital transformation. (Conclusion, Paragraph 136)

33. All claims must be issued a single reference number regardless of the "off-ramps and on-ramps" between paper and digital systems. (Recommendation, Paragraph 137)

34. Use of postal services for sending paper files must be replaced with email or other electronic methods. Postal options should be an opt-in service as already implemented across multiple Government agencies to effectively mitigate against digital exclusion. (Recommendation, Paragraph 138)

35. HMCTS must enhance existing electronic systems to support the upload of larger documents for all types of claims heard in the County Court. (Recommendation, Paragraph 139)

Other opportunities for reform

36. Mediation is a viable out of court route with early signs of success in the County Court. It offers claimants a quicker route to seeking justice, one not beset by delays or missing files. (Conclusion, Paragraph 146)

37. As part of any future review into the County Court, an evaluation of mandatory mediation must be undertaken to understand whether it can be effectively deployed in other claim types. (Recommendation, Paragraph 147)

38. Despite the bold ambitions of the Ministry of Justice, the piecemeal approach that has been taken to digitisation hampers any intentions of adopting a fully digital court process. Existing systems inhibit the early adoption of AI or a move to digital court bundles despite the innovation occurring in the legal sector. (Conclusion, Paragraph 154)

39. Following the completion of the £1 billion Reform Programme, HMCTS must prioritise the roll out of existing systems from other jurisdictions, such as CE Filing, which are well-regarded by legal professionals. These should not be replaced for the sake of change alone; instead, efforts must focus on integration and interoperability, ensuring successful tools are preserved and enhanced. (Recommendation, Paragraph 155)

40. The Ministry of Justice must launch a consultation, into how it plans to effectively use AI to improve the performance and operations of the County Court and report its conclusions by the end of 2026. (Recommendation, Paragraph 156)

Conclusions on the Work of the County Court

41. The County Court is the ‘Cinderella service’ of the justice system in England and Wales. It is beset by delays as a result of a failed attempt at digital reform, recruitment and retention issues, and a complex and dysfunctional “patchwork” of outdated paper-based and digital systems. (Conclusion, Paragraph 157)

42. The causes of the inefficiencies and delays in the County Court are well-established, and openly recognised by Ministers and officials, yet it is unclear how HM Courts and Tribunals Service (HMCTS), together with the Judiciary and the Ministry of Justice, intends to address them. The recent reviews into both sentencing and the criminal courts, highlight an absence of any attention or commitment to improving the dire situation currently facing the County Court. The Committee found that such problems would be all the greater without the highly commendable efforts of court staff to operate a system that ultimately fails to deliver civil justice. (Conclusion, Paragraph 158)

43. We recommend an urgent and comprehensive, root-and-branch review of the County Court. This review must be launched by Spring 2026 and encompass recruitment and retention challenges within both the Judiciary and HMCTS, establish a realistic and sustainable plan for future digitisation and capital investment, and explore the future role of artificial intelligence. The overarching goal must be to reduce the systemic delays and inefficiencies entrenched across the County Court. It is not tenable to continue without fundamental reform. (Recommendation, Paragraph 159)

Formal minutes

Tuesday 15 July 2025

Members present

Andy Slaughter, in the Chair

Pam Cox

Linsey Farnsworth

Warinder Juss

Tessa Munt

Sarah Russell

Work of the County Court

Draft Report (*Work of the County Court*), proposed by the Chair, brought up and read.

Ordered, That the draft Report be read a second time, paragraph by paragraph.

Paragraphs 1 to 159 read and agreed to.

Summary agreed to.

Resolved, That the Report be the Fourth Report of the Committee to the House.

Ordered, That the Chair make the Report to the House.

Ordered, That embargoed copies of the Report be made available (Standing Order no.134).

Adjournment

Adjourned till Tuesday 2 September 2025 at 2pm.

Witnesses

The following witnesses gave evidence. Transcripts can be viewed on the [inquiry publications page](https://committees.parliament.uk/work/7972/Work-of-the-County-Court/publications) (<https://committees.parliament.uk/work/7972/Work-of-the-County-Court/publications>), of the Committee's website.

Tuesday 7 May 2024

Dr Natalie Byrom, Honorary Senior Research Fellow, Faculty of Laws, UCL; **Elizabeth Gallagher**, Barrister, Temple Garden Chambers, Member, the Personal Injury Bar Association; **Emily Giles**, Housing Lawyer, The Hyde Group; **Matthew Maxwell Scott**, Executive Director, The Association of Consumer Support Organisations (ACSO)

[Q1-31 \(https://committees.parliament.uk/oralevidence/14805/html/\)](https://committees.parliament.uk/oralevidence/14805/html/).

Tuesday 18 March 2025

Rt Hon Sir Geoffrey Vos, Master of the Rolls and Head of Civil Justice, Judiciary of England and Wales; **Lord Justice Colin Birss**, Deputy Head of Civil Justice, Judiciary of England and Wales [Q32-78 \(https://committees.parliament.uk/oralevidence/15577/html/\)](https://committees.parliament.uk/oralevidence/15577/html/).

Tuesday 8 April 2025

Sarah Sackman KC MP, Minister for Courts and Legal Services, Ministry of Justice; **Steven Jarman**, Deputy Director (Civil Justice & Law Policy), Ministry of Justice; **Daniel Flury**, Operations Director, HM Courts and Tribunals Service; **Jason Latham**, Development Director, HM Courts and Tribunals Service

[Q79-131 \(https://committees.parliament.uk/oralevidence/15727/html/\)](https://committees.parliament.uk/oralevidence/15727/html/).

Published written evidence

The following written evidence was received and can be viewed on the [inquiry publications page](https://committees.parliament.uk/work/7972/Work-of-the-County-Court/publications) (<https://committees.parliament.uk/work/7972/Work-of-the-County-Court/publications>), of the Committee's website.

WCC numbers are generated by the evidence processing system and so may not be complete.

- 1 ALARM Public Sector Risk Management Association WCC0113
(<https://committees.parliament.uk/writtenevidence/137619/default/>).
- 2 Anexo Group plc WCC0050 (<https://committees.parliament.uk/writtenevidence/127098/html/>).
- 3 Anonymised WCC0102 (<https://committees.parliament.uk/writtenevidence/137457/html/>).
- 4 Anonymised WCC0090 (<https://committees.parliament.uk/writtenevidence/135753/html/>).
- 5 Anonymised WCC0080 (<https://committees.parliament.uk/writtenevidence/127792/html/>).
- 6 Anonymised WCC0074 (<https://committees.parliament.uk/writtenevidence/127752/html/>).
- 7 Anthony Collins Solicitors LLP WCC0041 (<https://committees.parliament.uk/writtenevidence/127080/default/>).
- 8 Association of Personal Injury Lawyers (APIL) WCC0043 (<https://committees.parliament.uk/writtenevidence/127082/html/>).
- 9 British Parking Association WCC0089 (<https://committees.parliament.uk/writtenevidence/135740/default/>).
- 10 CFG WCC0037 (<https://committees.parliament.uk/writtenevidence/127066/html/>).
- 11 CILEX WCC0103 (<https://committees.parliament.uk/writtenevidence/137460/default/>).
- 12 Carpenters Group WCC0109 (<https://committees.parliament.uk/writtenevidence/137501/default/>).
- 13 Carpenters Group WCC0053 (<https://committees.parliament.uk/writtenevidence/127129/html/>).
- 14 Civil Court Users Association (CCUA) WCC0100 (<https://committees.parliament.uk/writtenevidence/137442/default/>).
- 15 Civil Court Users Association (CCUA) WCC0057 (<https://committees.parliament.uk/writtenevidence/127179/html/>).
- 16 Civil Justice Council WCC0123 (<https://committees.parliament.uk/writtenevidence/138253/default/>).
- 17 Cooper, Mr Charlie WCC0091 (<https://committees.parliament.uk/writtenevidence/135975/default/>).
- 18 Croxson, Richard (Barrister and Chartered Quantity Surveyor, Govericks Ltd) WCC0133
(<https://committees.parliament.uk/writtenevidence/139388/default/>).
- 19 DCB Legal Ltd WCC0044 (<https://committees.parliament.uk/writtenevidence/127083/html/>).
- 20 DWF LLP WCC0042 (<https://committees.parliament.uk/writtenevidence/127081/html/>).
- 21 DWF Law LLP WCC0110 (<https://committees.parliament.uk/writtenevidence/137509/default/>).
- 22 DisputesEfilng WCC0024 (<https://committees.parliament.uk/writtenevidence/127023/html/>).
- 23 DisputesEfilng; and ADR-ODR International WCC0101 (<https://committees.parliament.uk/writtenevidence/137443/default/>).
- 24 Enterprise Mobility WCC0048 (<https://committees.parliament.uk/writtenevidence/127095/html/>).
- 25 Essex County Council WCC0025 (<https://committees.parliament.uk/writtenevidence/127032/html/>).
- 26 FOIL, The Forum of Insurance Lawyers WCC0115 (<https://committees.parliament.uk/writtenevidence/137696/default/>).
- 27 FOIL, The Forum of Insurance Lawyers WCC0051 (<https://committees.parliament.uk/writtenevidence/127122/html/>).

- 28 Federation of Small Businesses [WCC0078](https://committees.parliament.uk/writtenevidence/127780/html/) (<https://committees.parliament.uk/writtenevidence/127780/html/>).
- 29 Fieldfisher [WCC0027](https://committees.parliament.uk/writtenevidence/127042/html/) (<https://committees.parliament.uk/writtenevidence/127042/html/>).
- 30 Flanagan, Mrs Julie (Debt Recovery manager, United Utilities Water Ltd) [WCC0006](https://committees.parliament.uk/writtenevidence/126781/html/) (<https://committees.parliament.uk/writtenevidence/126781/html/>).
- 31 Forsters LLP [WCC0047](https://committees.parliament.uk/writtenevidence/127094/html/) (<https://committees.parliament.uk/writtenevidence/127094/html/>).
- 32 Forum of Complex Injury Solicitors (FOCIS) [WCC0063](https://committees.parliament.uk/writtenevidence/127243/html/) (<https://committees.parliament.uk/writtenevidence/127243/html/>).
- 33 Garfield.Law Limited [WCC0096](https://committees.parliament.uk/writtenevidence/136922/default/) (<https://committees.parliament.uk/writtenevidence/136922/default/>).
- 34 Gater, Mr Giles (Senior Lecturer, Staffordshire University); and Thomas, Mrs Natasha (Senior Lecturer, Staffordshire University) [WCC0034](https://committees.parliament.uk/writtenevidence/127060/html/) (<https://committees.parliament.uk/writtenevidence/127060/html/>).
- 35 Hewitt, Jonathan (Notary, Notariat of England and Wales) [WCC0114](https://committees.parliament.uk/writtenevidence/137681/default/) (<https://committees.parliament.uk/writtenevidence/137681/default/>).
- 36 Hewitt, Jonathan (Notary, Notary) [WCC0023](https://committees.parliament.uk/writtenevidence/127022/html/) (<https://committees.parliament.uk/writtenevidence/127022/html/>).
- 37 Hyde Housing Association Limited [WCC0049](https://committees.parliament.uk/writtenevidence/127096/html/) (<https://committees.parliament.uk/writtenevidence/127096/html/>).
- 38 International Parking Community [WCC0104](https://committees.parliament.uk/writtenevidence/137462/default/) (<https://committees.parliament.uk/writtenevidence/137462/default/>).
- 39 James, Sue (CEO, Legal Action Group) [WCC0131](https://committees.parliament.uk/writtenevidence/139297/default/) (<https://committees.parliament.uk/writtenevidence/139297/default/>).
- 40 Kennedys [WCC0127](https://committees.parliament.uk/writtenevidence/138355/default/) (<https://committees.parliament.uk/writtenevidence/138355/default/>).
- 41 Keoghs LLP [WCC0105](https://committees.parliament.uk/writtenevidence/137464/default/) (<https://committees.parliament.uk/writtenevidence/137464/default/>).
- 42 Keoghs LLP [WCC0058](https://committees.parliament.uk/writtenevidence/127200/html/) (<https://committees.parliament.uk/writtenevidence/127200/html/>).
- 43 Landlord Action [WCC0067](https://committees.parliament.uk/writtenevidence/127484/html/) (<https://committees.parliament.uk/writtenevidence/127484/html/>).
- 44 Large Agents Representation Group [WCC0026](https://committees.parliament.uk/writtenevidence/127036/html/) (<https://committees.parliament.uk/writtenevidence/127036/html/>).
- 45 Leader, Dr Kate (Senior Lecturer, Queen Mary, University of London) [WCC0084](https://committees.parliament.uk/writtenevidence/135090/html/) (<https://committees.parliament.uk/writtenevidence/135090/html/>).
- 46 McGarry, Dr John (Senior Lecturer in Law, Leeds Beckett University); Newman, Rebecca (Senior Service Manager, Support Through Court); and Henderson, Emma (Senior Lecturer in Law, Leeds Beckett University) [WCC0111](https://committees.parliament.uk/writtenevidence/137513/default/) (<https://committees.parliament.uk/writtenevidence/137513/default/>).
- 47 Midland Heart [WCC0038](https://committees.parliament.uk/writtenevidence/127073/html/) (<https://committees.parliament.uk/writtenevidence/127073/html/>).
- 48 Mills & Reeve LLP [WCC0054](https://committees.parliament.uk/writtenevidence/127143/html/) (<https://committees.parliament.uk/writtenevidence/127143/html/>).
- 49 Ministry of Justice [WCC0120](https://committees.parliament.uk/writtenevidence/137842/html/) (<https://committees.parliament.uk/writtenevidence/137842/html/>).
- 50 Ministry of Justice [WCC0017](https://committees.parliament.uk/writtenevidence/126985/html/) (<https://committees.parliament.uk/writtenevidence/126985/html/>).
- 51 National Residential Landlords Association [WCC0056](https://committees.parliament.uk/writtenevidence/127174/html/) (<https://committees.parliament.uk/writtenevidence/127174/html/>).
- 52 Northumbrian Water Group [WCC0022](https://committees.parliament.uk/writtenevidence/127020/html/) (<https://committees.parliament.uk/writtenevidence/127020/html/>).
- 53 Overdales Legal Ltd [WCC0062](https://committees.parliament.uk/writtenevidence/127242/html/) (<https://committees.parliament.uk/writtenevidence/127242/html/>).

54 Overdales Solicitors (second submission) [WCC0126](https://committees.parliament.uk/writtenevidence/138347/default/) (<https://committees.parliament.uk/writtenevidence/138347/default/>).

55 Peabody Group [WCC0076](https://committees.parliament.uk/writtenevidence/127775/html/) (<https://committees.parliament.uk/writtenevidence/127775/html/>).

56 Personal Injury Bar Association (PIBA) [WCC0029](https://committees.parliament.uk/writtenevidence/127050/html/) (<https://committees.parliament.uk/writtenevidence/127050/html/>).

57 Propertymark [WCC0118](https://committees.parliament.uk/writtenevidence/137729/default/) (<https://committees.parliament.uk/writtenevidence/137729/default/>).

58 Propertymark [WCC0021](https://committees.parliament.uk/writtenevidence/127009/html/) (<https://committees.parliament.uk/writtenevidence/127009/html/>).

59 Registry Trust [WCC0052](https://committees.parliament.uk/writtenevidence/127128/html/) (<https://committees.parliament.uk/writtenevidence/127128/html/>).

60 Registry Trust Limited [WCC0097](https://committees.parliament.uk/writtenevidence/137274/default/) (<https://committees.parliament.uk/writtenevidence/137274/default/>).

61 Sir Geoffrey Vos, Master of the Rolls and Head of Civil Justice and Lord Justice Colin Birss, Deputy Head of Civil Justice at the judiciary of England and Wales [WCC0119](https://committees.parliament.uk/writtenevidence/137822/default/) (<https://committees.parliament.uk/writtenevidence/137822/default/>).

62 Small Claims Advisor Limited [WCC0001](https://committees.parliament.uk/writtenevidence/126260/html/) (<https://committees.parliament.uk/writtenevidence/126260/html/>).

63 Southwark Law Centre [WCC0132](https://committees.parliament.uk/writtenevidence/139299/default/) (<https://committees.parliament.uk/writtenevidence/139299/default/>).

64 Taylor, Mr Andy [WCC0092](https://committees.parliament.uk/writtenevidence/136325/default/) (<https://committees.parliament.uk/writtenevidence/136325/default/>).

65 The Association of Consumer Support Organisations (ACSO) [WCC0108](https://committees.parliament.uk/writtenevidence/137477/default/) (<https://committees.parliament.uk/writtenevidence/137477/default/>).

66 The Association of Consumer Support Organisations (ACSO) [WCC0039](https://committees.parliament.uk/writtenevidence/127075/html/) (<https://committees.parliament.uk/writtenevidence/127075/html/>).

67 The Association of His Majesty's District Judges [WCC0135](https://committees.parliament.uk/writtenevidence/141852/default/) (<https://committees.parliament.uk/writtenevidence/141852/default/>).

68 The Association of His Majesty's District Judges [WCC0082](https://committees.parliament.uk/writtenevidence/128104/html/) (<https://committees.parliament.uk/writtenevidence/128104/html/>).

69 The Bar Council [WCC0046](https://committees.parliament.uk/writtenevidence/127089/html/) (<https://committees.parliament.uk/writtenevidence/127089/html/>).

70 The Hyde Group [WCC0134](https://committees.parliament.uk/writtenevidence/139430/default/) (<https://committees.parliament.uk/writtenevidence/139430/default/>).

71 The Law Society of England and Wales [WCC0094](https://committees.parliament.uk/writtenevidence/136888/default/) (<https://committees.parliament.uk/writtenevidence/136888/default/>).

72 The Law Society of England and Wales [WCC0028](https://committees.parliament.uk/writtenevidence/127048/html/) (<https://committees.parliament.uk/writtenevidence/127048/html/>).

73 The Wrekin Housing Group Limited [WCC0075](https://committees.parliament.uk/writtenevidence/127771/html/) (<https://committees.parliament.uk/writtenevidence/127771/html/>).

74 Thompsons Solicitors [WCC0036](https://committees.parliament.uk/writtenevidence/127065/html/) (<https://committees.parliament.uk/writtenevidence/127065/html/>).

75 Thompsons Solicitors LLP [WCC0116](https://committees.parliament.uk/writtenevidence/137699/default/) (<https://committees.parliament.uk/writtenevidence/137699/default/>).

76 True Solicitors LLP [WCC0045](https://committees.parliament.uk/writtenevidence/127086/html/) (<https://committees.parliament.uk/writtenevidence/127086/html/>).

77 Weightmans LLP [WCC0112](https://committees.parliament.uk/writtenevidence/137516/default/) (<https://committees.parliament.uk/writtenevidence/137516/default/>).

78 White, His Honour Graham (Judicial Member , Parole Board of England and Wales) [WCC0087](https://committees.parliament.uk/writtenevidence/135563/default/) (<https://committees.parliament.uk/writtenevidence/135563/default/>).

79 Wilson & Roe [WCC0007](https://committees.parliament.uk/writtenevidence/126792/default/) (<https://committees.parliament.uk/writtenevidence/126792/default/>).

80 Winn Solicitors Ltd [WCC0035](https://committees.parliament.uk/writtenevidence/127062/html/) (<https://committees.parliament.uk/writtenevidence/127062/html/>).

List of Reports from the Committee during the current Parliament

All publications from the Committee are available on the [publications page](https://committees.parliament.uk/committee/102/Justice-Committee/publications/reports-responses/) (<https://committees.parliament.uk/committee/102/Justice-Committee/publications/reports-responses/>), of the Committee's website.

Session 2024–25

Number	Title	Reference
3rd	Leadership of the Criminal Cases Review Commission	HC 749
2nd	Appointment of the Chief Inspector of HM Crown Prosecution Service Inspectorate	HC 578
1st	Appointment of the Chair of the Independent Monitoring Authority for the Citizens' Rights Agreements	HC 485
1st Special	The constitutional relationship with the Crown Dependencies: Government Response	HC 582

Footnotes

¹ HMCTS, [Civil justice quarterly statistics: October to December 2024](https://view.officeapps.live.com/op/view.aspx?src=https%3A%2F%2Fassets.publishing.service.gov.uk%2Fmedia%2F67c83c3eae2aa47d2f5ae2f0%2Faccessible-civil-justice-stats-main-tables-Oct-Dec-2024.ods&wdOrigin=BROWSELINK) (<https://view.officeapps.live.com/op/view.aspx?src=https%3A%2F%2Fassets.publishing.service.gov.uk%2Fmedia%2F67c83c3eae2aa47d2f5ae2f0%2Faccessible-civil-justice-stats-main-tables-Oct-Dec-2024.ods&wdOrigin=BROWSELINK>), OpenDocument, Table 1.1

² Justice Select Committee, [New inquiry: Justice Committee launches new inquiry on the work of the County Court amid capacity and resource concerns](https://committees.parliament.uk/work/7972/work-of-the-county-court/news/198166/new-inquiry-justice-committee-launches-new-inquiry-on-the-work-of-the-county-court-amid-capacity-and-resource-concerns/) (<https://committees.parliament.uk/work/7972/work-of-the-county-court/news/198166/new-inquiry-justice-committee-launches-new-inquiry-on-the-work-of-the-county-court-amid-capacity-and-resource-concerns/>), (accessed on 16 June 2025), and HMCTS, [Civil justice quarterly statistics: April to June 2023](https://www.gov.uk/government/statistics/civil-justice-statistics-quarterly-april-to-june-2023) (<https://www.gov.uk/government/statistics/civil-justice-statistics-quarterly-april-to-june-2023>), HTML

³ Justice Select Committee, Sixth Report of Session 2021–22, [Court Capacity](https://publications.parliament.uk/pa/cm5802/cmselect/cmjust/69/report.html), (<https://publications.parliament.uk/pa/cm5802/cmselect/cmjust/69/report.html>), HC 69, para 111

⁴ [Letter from former Justice Select Committee Chair, Sir Robert Neil, to all contributors to Justice Select Committee inquiries regarding their submissions, 23 May 2024](https://hopuk-my.sharepoint.com/personal/wrightl_parliament_uk/Documents/WoCC/Report/committees.parliament.uk/publications/44981/docu) (https://hopuk-my.sharepoint.com/personal/wrightl_parliament_uk/Documents/WoCC/Report/committees.parliament.uk/publications/44981/docu)

⁵ Sir Geoffrey Vos, Master of the Rolls and Head of Civil Justice and Lord Justice Colin Birss, Deputy Head of Civil Justice at the judiciary of England and Wales ([WCC0119 \(https://committees.parliament.uk/writtenevidence/137822/default/\)](https://committees.parliament.uk/writtenevidence/137822/default/))

⁶ Except for claims relating to media and communications work.

7 Crime and Courts Act 2013 (<https://www.legislation.gov.uk/ukpga/2013/22/contents>), ss 17

8 The Possession Claims Online (PCOL) is an online portal that allows for making and responding to claims for possession on the grounds of rent arrears or default of a mortgage payment.

9 The Money Claims Online (MCOL) is an online portal that allows both legal practitioners and litigants-in person to issue County Court claims for a fixed sum of money up to £100,000, against no more than two defendants. A claimant may request the issue of a claim form through the portal which is then sent to the preferred hearing centre to be issued. The defendant can respond online through MCOL, including filing a defence or counterclaim. The Online Civil Money Claims (OCMC) is an ongoing pilot that allows for both represented and unrepresented parties to bring claims of up to £25,000, that would otherwise be made through MCOL. It is envisaged that, subject to a successful pilot, OCMC will gradually replace MCOL. The Online Civil Money Claims (OCMC) pilot is operating from 7 August 2017 to 1 October 2025.

10 The Damages Claim Portal (DCP) is an online portal that allows claimants represented by a legal practitioner to request the issue of damages claims, irrespective of value, at the County Court.

11 Those unable to claim online may claim by post via the paper claim form N1.

12 A default judgment is a ruling made in favour of the claimant without a hearing or further notice to the defendant.

13 For claims issued on or after 1 October 2023.

14 This is not mandatory for DCP as CPR26.6 (which mandates mediation) is disapplied.

15 Except for road traffic accident claims and personal injury claims.

16 County Court Judgments (CCJs) are entered onto the Register when issued. If the full amount is paid within one month of the judgment date, the entry is removed. Judgments settled after this one-month period can be marked as “satisfied” but will remain on the Register for six years from the date of judgment.

17 FOIL, The Forum of Insurance Lawyers (WCC0115 (<https://committees.parliament.uk/writtenevidence/137696/default/>))

18 HMCTS, Civil justice quarterly statistics: October to December 2024 (<https://view.officeapps.live.com/op/view.aspx?src=https%3A%2F%2Fassets.publishing.service.gov.uk%2Fmedia%2F67c83c3eae2aa47d2f5ae2f0%2Faccessible-civil-justice-stats-main-tables-Oct-Dec-2024.ods&wdOrigin=BROWSELINK>), OpenDocument, Table 1.1 and Table 1.2

19 The intermediate track came into force on 1 October 2023 under the Civil Procedure (Amendment No.2) Rules 2023. Claims allocated to the intermediate track were previously allocated to fast or multi track.

20 HMCTS, Civil justice quarterly statistics: October to December 2024 (<https://view.officeapps.live.com/op/view.aspx?src=https%3A%2F%2Fassets.publishing.service.gov.uk%2Fmedia%2F67c83c3eae2aa47d2f5ae2f0%2Faccessible-civil-justice-stats-main-tables-Oct-Dec-2024.ods&wdOrigin=BROWSELINK>), OpenDocument, Table 1.5

21 The Association of Consumer Support Organisations (ACSO) (WCC0108 (<https://committees.parliament.uk/writtenevidence/137477/default/>))

22 Anexo Group plc (WCC0050 (<https://committees.parliament.uk/writtenevidence/127098/html/>))

23 Ministry of Justice (WCC0120 (<https://committees.parliament.uk/writtenevidence/137842/html/>))

24 HMCTS, HM Courts and Tribunals Service framework document (<https://www.gov.uk/government/publications/hm-courts-and-tribunals-service-framework-document>), gov.uk, July 2014

25 These statistics relate to Q1 of 2025, elsewhere in the report we compare the latest available full year statistics which are reported by HMCTS as Q1 to Q4 of 2024.

26 Q83 (<https://committees.parliament.uk/oralevidence/15727/html/>).

27 The Association of Consumer Support Organisations (ACSO) (WCC0108 (<https://committees.parliament.uk/writtenevidence/137477/default/>))

28 HMCTS, Civil justice quarterly statistics: October to December 2024 (<https://view.officeapps.live.com/op/view.aspx?src=https%3A%2F%2Fassets.publishing.service.gov.uk%2Fmedia%2F67c83c3eae2aa47d2f5ae2f0%2Faccessible-civil-justice-stats-main-tables-Oct-Dec-2024.ods&wdOrigin=BROWSELINK>), OpenDocument, Table 1.1

29 Sir Geoffrey Vos, Master of the Rolls and Head of Civil Justice and Lord Justice Colin Birss, Deputy Head of Civil Justice at the judiciary of England and Wales (WCC0119 (<https://committees.parliament.uk/writtenevidence/137822/default/>))

30 Q7 (<https://committees.parliament.uk/oralevidence/14805/html/>).

31 Q7 (<https://committees.parliament.uk/oralevidence/14805/html/>).

32 Sir Geoffrey Vos, Master of the Rolls and Head of Civil Justice and Lord Justice Colin Birss, Deputy Head of Civil Justice at the judiciary of England and Wales (WCC0119 (<https://committees.parliament.uk/writtenevidence/137822/default/>))

33 Sir Geoffrey Vos, Master of the Rolls and Head of Civil Justice and Lord Justice Colin Birss, Deputy Head of Civil Justice at the judiciary of England and Wales (WCC0119 (<https://committees.parliament.uk/writtenevidence/137822/default/>))

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